

12-49971
CCMS (PB)

2/4/25

LAC. 597/23

FR-102476/2025

IN THE HIGH COURT OF KARNATAKA AT DHARWAD			
W. P.	No:	2025	LA-RES
Dist- Bagalkot			

Advocates Sri	Between
Sri. P.G.Yatnal and Associates, No.200/A, 10 th Main, 55 th Cross, Rajajinagar, (Opp- Ram Mandir Door), Bengaluru-560010. Mob.No.9972423442 Pyatanl@gmail.com	Krishna Bhagya Jala Nigama Ltd. ...Petitioner
	And
	The Special Land Acquisition Officer and ors ...Respondents

PRESENTATION FORM

Sl.No.	Description of Papers Presented	Court Fee paid
1.	On memorandum of W. P.	
2.	On the memo of appearance	
3.	On	
4.	On Certified Copies	
		Total 100/-

Number of Copies furnished Other side Served

Presented by

P.G. Yatnal

Advocate for petitioner

Court-fee label as above

Date : 01-04-2025

Received papers with

Advocate's clerk

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and ors

... Respondents

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Dharwad.

Date: 01-04-2025

Advocate for Petitioner

(P. G. Yatnal)

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. /2025BETWEEN;

Krishna BhagyaJalaNigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and ors. ...Respondents

SYNOPSIS

Sl. No.	DATE	EVENTS
1	2019	The respondent No.03 filed claim petition before the Hon'ble court below for enhancement of compensation regarding her land was acquired for public purpose by the 1 st respondent.
2.	08/01/2025	Since, the petitioner was not made party to proceedings before the courts below, the petitioner filed an IA for impleadment itself as a respondent.
3	25/03/2025	The application filed by the petitioner for impleadment was rejected on erroneous grounds that there was a delay and the person who signed vakalatanama was not empowered to do so. Hence, the petitioner aggrieved.

BRIEF FACTS OF THE CASE:

The petitioner is highly aggrieved by order vide Annexure-G, having no other alternative and efficacious remedy available than approaching this Hon'ble Court under Article 226 and 227 of the Constitution of India, is before this Hon'ble Court through this writ petition.

Bangalore.

01-04-2025

ADVOCATE FOR PETITIONER

(P. G. YATNAL)

IN THE HIGH COURT OF KARNATAKA AT BANGALORE
(SUPERVISORY JURISDICTION)

WRIT PETITION NO. /2025

BETWEEN:

Rank of the parties
This court / Trail court

Krishna BhagyaJala Nigama Ltd.,

Upper Krishna Project, Almatti,

Tq: Nidagundi, Vijayapur Dist.-

Rep. By its Managing Director

...Petitioner/Applicant

V/S

1. The Special Land Acquisition Officer,

BTDA, Bagalakot-586201

...Respo No.1/Respo No.1

2. The State of Karnataka

Rep. the Deputy Commissioner,

Bagalakot-586201

...Respo No.2/Respo No.2

3. Smt. Jayashri W/o Shrikant Telsang

Age: 58 years; Occ: Household,

R/o: Bagalkot

Bagalkot, Tq and Dist: Bagalkot

...Respo No.3/ Claimant

MEMORANDUM OF WRIT PETITION UNDER ARTICLE 226 AND

227 OF THE CONSTITUTION OF INDIA.

The Petitioner states as follows:

BRIEF FACTS OF THE CASE:

1. That the petitioner /Nigam is a company owned by the Government of Karnataka for implementation of the Upper Krishna Project,(hereinafter

called as UKP) which has responsibility of execution of all irrigation projects, rehabilitation and resettlement of the people affected by the project. The petitioner, being a company, has its own assets and liability.

2. That land required for the petitioner to implementation various projects and in this regard, the respondent No.01 is appointed to acquire land. However, it is the petitioner, who is liable to pay the compensation to the land owners as per the amount fixed by the 1st respondent as per a circular vide No: JA.SAM.E 06 MMJI 2023 dated 07/08/2024 issued by secretary of Water Resources Department is hereby produced as Annexure-A.
3. That the 03rd respondent also had land bearing Sy. No. 142/2C/1C/2 measuring 01 acres 18 guntas situated at Bagalkot, Bagalkot Taluk and Dist., (hereinafter referred to as the "schedule property") was acquired by the 1st respondent and aggrieved by the award of the 01st respondent, the 03rd respondent filed a reference petition dated 21/08/2021 is hereby produced as Annexure-B-4, which was forwarded to the II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalkot and it was numbered as LAC No. 597/2023.
4. That the scheduled property under acquired by the 01st respondent for the public purpose, i.e., for the rehabilitation and reconstruction of Bagalkot city, which was submerged under UKP.
5. The proceedings in above cases have been commenced before the Hon'ble court below without the petitioner was impleaded and no copy

of notice is served on the petitioner as it was necessary party to the proceedings. Besides, there is a circular vide No: RD04 LCA 2024(E-1351620) dated 07/03/2024 is hereby produced as Annexure-C-1 and vide No: RD 04 LCA 2024(E-1351620) dated 19/04/2024 hereby produced as Annexure-C-2 are issued by the Deputy Secretary of Land Acquisition and R&R, Department of Revenue, Bengaluru. Mandating that the petitioner is to be made as parties to the proceedings in all land acquisition cases of UKP and it is the duty of the Respondent No. 03 to implead the petitioner in her case pending before Hon'ble Court below.

6. That further, Shri. Sudeer Sajjan, Deputy Chief Engineer, is appointed as a Nodal Officer of the petitioner as per order vide No: VYA.NI./KRUBHAJANINI/PRA.VYA(AA)/SI-2/2024-25 dated 23/04/2024 is hereby produced as Annexure-C-3 issued by the Managing Director of Krishna Bhagya Jala Nigama Limited (hereinafter referred as KBJNL), Bangalore wherein, he is directed to implead the petitioner as a respondent in all LAC matters pertaining to UKP matters. Further more, an vide order No: CS/421-F/2024-25 dated 22/07/2024 is hereby produced as Annexure-D issued by the Managing Director of KBJNL, Bangalore whereby, he is authorized to sign the vakalatanama and statements of objections etc.in land acquisition cases pertaining to UKP in various courts.
7. That on the basis of directions as per Annexure-C-1 to C-3 and D,
 - i. an application dated 08/01/2025 is hereby produced as Annexure-E in LAC No. 597/2023 was filed for impleadment of the petitioner in said case and respondent No. 03 filed his objection dated 13/01/2025

is hereby produced as Annexure-F. In said objections, the respondent No.3 contended that there is delay in filing said application.

8. That the Hon'ble court below clubbed all IAs filed by the petitioner and dismissed them by its order in LAC No. 597/2023 on the file of II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalkote dated 25/03/2025 is hereby produced as Annexure-G holding that the application are not maintainable on the ground that there was a delay in filing said applications and erroneously also held that a Nodal Officer, who signed vakalatanama was not authorized person to do so. Hence, this writ petition.
9. The petitioner is aggrieved by order of the court below and the petitioner having no any alternative and efficacious remedy available than approaching this Hon'ble Court under Article 226 and 227 of the Constitution of India, on the following amongst other:

GROUND S

10. That order of the court below is illegal and opposed to law and against to the principles of natural justice. It is not challenging the Constitutional validity.
11. That the Hon'ble court failed to appreciate that the Nodal Officer, in fact, has been empowered as per Annexure-C-3 to file applications for impleadment of the petitioner as a respondent in all LAC cases pertaining to UKP and he is also authorized to sign vakalatanama, statement of objections, etc. filed by the petitioner in those cases including the cases in which impleadining application was rejected by the Hon'ble court below. However, the Hon'ble court below came to

erroneously conclusion that the application for impleadment was not maintainable on the ground that the MD of the petitioner has not sign the vakalatanama. Said conclusion of the Hon'ble court below is contrary to the documents. Therefore the impugned order is not sustainable under the law.

12. That the Hon'ble court rejected the said applications on an another ground that there was a delay in filing the applications for the impleadment of the petitioner is not tenable as per Annexure-A and C-1 to C-2 as it was directed to the petitioner to be impleaded as a respondent in LAC cases under the UKP. Therefore, the petitioner filed applications for impleadment and there was no delay on part of petitioner in filing such applications. Said aspect lost the sight of the Hon'ble court below in passing impugned order needs to be set at naught by this Hon'ble court.
13. That the petitioner, being a beneficiary of the UKP for which the land has been acquired, is a 'Person Interested' as defined under Section 3(x)(i) of the New Land Acquisition Act, 2013 has been held by the courts in a catena of cases. Particularly, in MSA No.119/2023 decided on 23-11-2024 in Sri. C. B. Poojarappa Vs. SLAO is hereby produced as Annexure-H and this Hon'ble Court of Principal Bench held that the Kaveri Niravari Nigam, a company established for Kaveri basin like the present petitioner for Upper Krishna Project is a 'person interested' to be made as party and to be heard to determine just and proper compensation for an acquired land and is an aggrieved person and thus, a proper and necessary party under Order I Rule 10 of CPC. In said

judgment, the judgment and award passed by the reference court was set aside and matter was remitted back for fresh consideration. In Para 16 of the judgment, it is specifically held as under:

"16..., second respondent beneficiary was not made party in the Reference Court as also before the First Appellate Court and straightaway second respondent is made a party in this appeal by way of impleadment. Therefore, this court is of the opinion that the matter must be is (sic) remanded to the Reference Court and impugned award passed by the Reference Court and the First Appellate Court will have to be set aside. The second respondent beneficiary will have to be made as a party in the Reference Court and parties are to be given opportunity to adduce their further evidence, if they are so advised, either oral, documentary or both."

14. That it is bounden duty of the claimants before the Hon'ble court below to implead the petitioner as a respondent as the petitioner is a necessary party in whose absence very claim petitions are bad for non-joinder of necessary party as contemplated under Order I Rule 09 of CPC Proviso regarding effect of non-joinder of necessary parties is enumerated, which reads asunder:

"9. Mis-joinder and non-joinder. No suit shall be defeated by reason of the mis-joinder or non-joinder of parties, and the Court may in every suit deal with the matter in controversy so far as regards the rights and interests of the parties actually before it:

Provided that nothing in this rule shall apply to non-joinder of a necessary party."

The petitioner, which is primarily responsible to pay compensation to respondent No.03, is a necessary party under Order 1 Rule 9 of CPC and in absence of the petitioner in the proceedings before the court below is hit by Proviso to Rule 9 of Order 1 of CPC. It is also a well settled principle of law that non-joinder of necessary party is fatal to the case and non-curable defect and a proceeding will be defeated on said ground. It is pertinent to mention decision of the Hon'ble High Court of Madras in Rathinaswamy Vs. AchiKannu: S. A No. 1698/2003 dated 04/03/2020 is hereby produced as Annexure-J has held that-

“ 21. When proper parties were not included in the Suit, the Suit is not bad for non-joinder, but if the parties who are not on the array of the parties in the Suit who are necessary parties in whose absence no final adjudication could be made, then the Suit has to be held bad for non-joinder of necessary parties. If proper parties are not added, the Court may allow further time affording opportunity to the Plaintiff to include them. But if the necessary parties were omitted to be included in the Suit, then the Plaintiff has to face the legal consequence of dismissal of the Suit. In the absence of necessary party, no effective decree could be passed. In short, non-joinder of proper party is not fatal while non-joinder of necessary party is fatal to the case. When the Court sees that a particular party, who has been ignored by the Plaintiff in the suit, there is no option for the Court except to dismiss the same”.

15. The petitioner seeks leave of this Hon'ble court to raise, urge and plead such other grounds available to it at the hearing.

16. The petitioner has not filed any other petition/appeal before any other Court of law on the cause of action urged in this petition.

GROUND FOR INTERIM PRAYER:

17. That the impugned order is erroneous as it is based on misconceived facts and law. Particularly, the Hon'ble court below failed to notice that the petitioner is a company owned by the Government of Karnataka to implement UKP and it is the petitioner, which is responsible to pay the compensation awarded by the Hon'ble court below in instant cases. Therefore, it is a necessary party without whose presence proceedings before the Hon'ble court below is nothing but nullity. Further, the case before the Hon'ble court below is posted on 01/04/2025 for objections on the commissioner report containing examination of witnesses marking of documents is already on the file of Hon'ble court below and there is all probability that the Hon'ble court below may dispose off said cases during the pendency of this petition and thereby this writ petition may become infructuous. Hence, it is required to pass an interim order staying further proceedings in LAC No. 597/2023 on the file of II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalakot until disposal of this writ petition. This Hon'ble court has passed an interim order by staying in identical case in WP No. 101758/2025 dated 11/03/2025 is hereby produced as Annexure- K.

18. PRAYER:

Wherefore, the petitioner respectfully prays that this Hon'ble Court may be pleased to;

- a) Issue a Writ of certiorari quashing order dated 25/03/2025 passed in LAC No. 597/2023 pending on the file of II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalkote is produced as Annexure-G.

Issue any other writ, order or direction as this Hon'ble court deems fit in the facts and circumstances of the case in the interest of justice and equity.

19. INTERIM PRAYER:

For the reasons stated in grounds for interim prayer, this Hon'ble court may be pleased to stay the further proceedings in LAC No. 597/2023 pending on the file of II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalakote pendency of this writ petition.

THE SCHEDULE PROPERTY

Land bearing Sy. No. 142/2C/1C/2 measuring 36 guntas situated at Bagalkot, Bagalkot Taluk and Dist.,

Dharwad.

01-04-2025

Address For Service:

Sri.P.G.Yatnal

and Associates,

No.200/A, 10th Main,

Rajajinagar, Bangalore-560010

Advocate for Petitioner
(P. G. Yatnal)

12

IN THE HIGH COURT OF KARNATAKA DHARWAD BENCH

WP NO. /2025

BETWEEN:

Krishna Bagya Jala Nigam Ltd.

....PETITIONER

AND:

Special Land Acquisition Officer

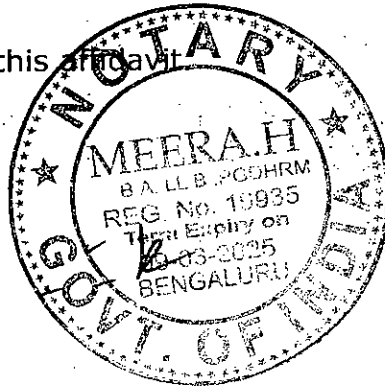
...RESPONDENTS

AFFIDAVIT

I, Sri. K. P. Mohanraj, aged about 53 Years, Managing Director, Krishna Bhagya Jala Nigam Limited, Liaison Office, Bengaluru, do hereby solemnly affirm and state on oath.

1. I submit that I am the petitioner. The Present Managing Director of the Nigam. I am swearing this affidavit as hereunder.
2. I state that averments made in the Writ Petition from paragraph No. to are true and correct to the best of my knowledge and information and Annexure-A to Annexure- are true copies of originals and Annexure- is a certified copy.
3. I state that the averments made above are true and corrected to the best of my knowledge in formation and belief.

Hence this affidavit



**PLACE:
DATE:**

KPM
Deponent

Sworn before me

SWORN TO BEFORE ME

Meera H 7/3/25

No. of CORRECTION...

Meera H
Advocate And Notary Public
Govt Of India
City Civil Court Complex Premises
Bengaluru - 560 009

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ANNEXURE - A

ಸಂಖ್ಯೆ:ಜಸಂಇ 06 ಎಂಎಂಜಿ 2023

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ವಿಕಾಸಸೌಧ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ:07.08.2024

ಸುತ್ತೋಲೆ

ರಾಜ್ಯ ಸರ್ಕಾರವು ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಕಾಲಕಾಲಕ್ಕೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಕೋರಿ ಭೂ ಮಾಲೀಕರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಎಲ್.ಎಸ್. ಎಲ್.ಎಸ್.ಎ, ಎಂ.ಎ, ಓ.ಎಸ್, ರಿಟ್ ಅರ್ಜಿ, ಎಂ.ಎಫ್.ಎ, ಎಂ.ಎಸ್.ಎ, ಎಸ್.ಎಲ್.ಪಿ ಮತ್ತು ಇತರ ಪ್ರಕರಣಗಳನ್ನು ದಾಖಲಿಸುತ್ತಿದ್ದು, ಸವರಿ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಮತ್ತು ಕಲವೊಂದು ಪ್ರಕರಣಗಳಲ್ಲಿ ಇಲಾಖೆಯನ್ನು ಪ್ರತಿವಾದಿ/ಎದುರುದಾರರನ್ನಾಗಿಸಿ ರಾಜ್ಯದ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಮತ್ತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಾವೆಗಳನ್ನು ದಾಖಲಿಸಲಾಗುತ್ತಿದೆ.

K.B.J.N.L.

DATE	ಲೇಖನೀಕರಣದಾಯ	ಇಲಾಖೆಯ	ದಿನಾಂಕ:07.03.2024ರ	ಸುತ್ತೋಲೆ	ಹಾಗೂ
M.D.	ದಿನಾಂಕ: 9.04.2024ರ	ತಿದ್ದುಪಡಿಯಲ್ಲಿ	"ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ		
T.D.	ನಿಗಮಗಾರಿಗೆ	ಸಂಬಂಧಪಟ್ಟಂತೆ	ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ		
G.M.A.	ಜಮೀನುಗಳ	ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ	ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ		
G.M.F.	ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ	ಈಗಾಗಲೇ ದಾಖಲಾಗಿ	ವಿಚಾರಣೆ ನಡೆಯುತ್ತಿರುವ /ಇನ್ನು ಮುಂದೆ		
C.S.	ದಾಖಲಾಗುವ ಎಲ್ಲಾ	ಎಲ್.ಎ.ಸಿ, ಓ.ಎಸ್, ರಿಟ್ ಮತ್ತು	ಎಕ್ಸಿಕ್ಯೂಶನ್ ಪಿಟಿಷನ್ ಇತರ		

ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ನಿಗಮ/ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರುವಂತೆ ಸೂಚಿಸಿದೆ".

ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯಡಿಯಲ್ಲಿನ ಯೋಜನೆಗಳ ಅನುಷ್ಠಾನಕ್ಕಾಗಿ ಕಂಪನಿ ಕಾಯ್ದೆ 1956ರನ್ವಯ ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ ಮತ್ತು ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ (ಸರ್ಕಾರಿ ಸ್ವಾಮ್ಯದ) 4 ನಿಗಮಗಳನ್ನು ರಚಿಸಲಾಗಿದೆ. ಯೋಜನೆಗಳ ತ್ವರಿತ ಅನುಷ್ಠಾನ ಮಾಡುವ ಹಾಗೂ ಪೂರ್ಣಗೊಂಡ ಯೋಜನೆಗಳ ನಿರ್ವಹಣೆ ಉದ್ದೇಶದಿಂದ ಯೋಜನೆಗೆ ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ಆಸ್ತಿ ಮತ್ತು ಋಣವನ್ನು ಈ ನಿಗಮಗಳಿಗೆ ವರ್ಗಾಯಿಸಲಾಗಿರುತ್ತದೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸರ್ಕಾರದಿಂದ ಆಡಳಿತಾತ್ಮಕ ಅನುಮೋದನೆಗೊಂಡು ಪ್ರಗತಿಯಲ್ಲಿರುವ ಯೋಜನೆಗಳು ಹಾಗೂ ಸರ್ಕಾರದಿಂದ ನಿಗಮದ ವ್ಯಾಪ್ತಿಗೆ ವರ್ಗಾವಣೆಗೊಂಡ ಎಲ್ಲಾ ಯೋಜನೆಗಳ ಭೂಸ್ವಾಧೀನ, ಕಾಮಗಾರಿಗಳ ಅನುಷ್ಠಾನದ ಕಾರ್ಯಕ್ರಮವನ್ನು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿಯೇ

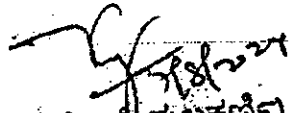
KRISHNA WATER SUPPLY LTD,
Regd. Office: P.W.D. Office Annex
3rd Floor, K.R. Circle, Bengaluru-01

16 AUG 2024

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ಮುಂದುವರೆದು, ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ನಿಗಮಗಳ ರಚನೆ ಪೂರ್ವದಲ್ಲಿ ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡು ನಂತರ ನಿಗಮಕ್ಕೆ ಹಸ್ತಾಂತರಿಸಿದ ಹಾಗೂ ನಿಗಮಗಳು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಪ್ರಕರಣಗಳಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಆದೇಶಗಳನ್ವಯ ಪರಿಷ್ಕೃತ ಭೂ ಪರಿಹಾರ / ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರವನ್ನು ಭೂಮಾಲೀಕರಿಗೆ ಯೋಜನೆಯನ್ನು ಅನುಷ್ಠಾನಗೊಳಿಸುತ್ತಿರುವ/ ನಿರ್ವಹಿಸುತ್ತಿರುವ ನಿಗಮಗಳು ರಾಜ್ಯ ಸರ್ಕಾರವು ಆಯವ್ಯಯದಲ್ಲಿ ಅವುಗಳಿಗೆ ಹಂಚಿಕೆಮಾಡುವ ಅನುದಾನದಿಂದ ಪಾವತಿಸಲಾಗುತ್ತಿವೆ.

ಮೇಲ್ಕಂಡ ಅಂಶಗಳು ಹಾಗೂ ಕಂದಾಯ ಇಲಾಖೆಯ ದಿನಾಂಕ: 07.03.2024ರ ಸುತ್ತೋಲೆ, ದಿನಾಂಕ: 19.04.2024ರ ತಿದ್ದುಪಡಿಯಲ್ಲಿ ಪ್ರಸ್ತಾಪಿಸಿರುವ ಅಂಶಗಳು ಹಾಗೂ ಕಾನೂನು, ನ್ಯಾಯ ಮತ್ತು ಮಾನವ ಹಕ್ಕುಗಳ ಇಲಾಖೆಯು ಟಿಪ್ಪಣಿ ಸಂಖ್ಯೆ: ಲಾ 137 ಅಭಿಪ್ರಾಯ 2024 ದಿನಾಂಕ: 31.07.2024ರಲ್ಲಿ ನೀಡಿರುವ ಅಭಿಪ್ರಾಯದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ, ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯ 4 ನಿಗಮಗಳಡಿಯಲ್ಲಿ ಪ್ರತ್ಯೇಕ ಕಾನೂನು ಕೋಶವಿದ್ದು, ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಸಂಬಂಧಿಸಿದ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣಗಳಲ್ಲಿ implead ಆಗುವ/ ಅಪೀಲು ಹಾಜರಿಸುವ/ಪರಿಹಾರ ಪಾವತಿಸುವ ಕುರಿತು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿ ಕಾನೂನಾತ್ಮಕವಾಗಿ ಪರಿಶೀಲಿಸಿ/ವಿಮರ್ಶಿಸಿ, ನಿಯಮಾನುಸಾರ ಸೂಕ್ತ ನಿರ್ಣಯಗಳನ್ನು ತೆಗೆದುಕೊಳ್ಳಲು ಕ್ರಮವಹಿಸಲು ಸೂಚಿಸಲಾಗಿದೆ.


(ಕೃಷ್ಣಮೂರ್ತಿ ಬಿ. ಕುಲಕರ್ಣಿ)
ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿ
ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ.

ಇವರಿಗೆ:

1. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಆಯುಕ್ತರು, ಪುನರ್ವಸತಿ & ಪುನರ್ನಿರ್ಮಾಣ, ಬಾಗಲಕೋಟೆ.
6. ನಿರ್ದೇಶಕರು, ಕಾಡಾ ನಿರ್ದೇಶನಾಲಯ, ಬೆಂಗಳೂರು.
7. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
8. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ಅಡಕಟ್ಟು ಸುರಕ್ಷತಾ ಸಂಸ್ಥೆ, ಬೆಂಗಳೂರು.
9. ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, AC-IWRM, ಬೆಂಗಳೂರು.
10. ನಿರ್ದೇಶಕರು, ಕೆ.ಇ.ಆರ್.ಎಸ್. ಕೆ.ಆರ್.ಸಾಗರ.
11. ನಿರ್ದೇಶಕರು, ಫಾಲ್ಗುಣಿ ಧಾರವಾಡ.
12. ಸರ್ಕಾರದ ಅಪರ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿಗಳು, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ವಿಕಾಸ ಸೌಧ, ಬೆಂಗಳೂರು.
13. ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿಯವರ ಆಪ್ತ ಕಾರ್ಯದರ್ಶಿ, ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ವಿಕಾಸ ಸೌಧ, ಬೆಂಗಳೂರು.
14. ಸರ್ಕಾರದ ಜಂಟಿ ಕಾರ್ಯದರ್ಶಿ (ಕೆಬಿಜಿಎನ್), ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
15. ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ (ಎಂಎಂಐ), ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
16. ವಿಶೇಷ ಕರ್ತವ್ಯಾಧಿಕಾರಿ, ತಾಂತ್ರಿಕ-1/2/3, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
17. ಸರ್ಕಾರದ ಅಧೀನ ಕಾರ್ಯದರ್ಶಿ, ತಾಂತ್ರಿಕ-4/5/ಕಾಡಾ, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
18. ತಾಂತ್ರಿಕ ಸಹಾಯಕರು, ತಾಂತ್ರಿಕ-6/7, ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ, ಬೆಂಗಳೂರು.
19. ಹೆಚ್ಚುವರಿ ಪ್ರತಿಗಳು.

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ:ಜಸಂಇ 06ಎಂಜಿ 2023

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ

ವಿಕಾಸಸೌಧ ಬಹುಮಡಿ ಕಟ್ಟಡ ಬೆಂಗಳೂರು,

ದಿನಾಂಕ 07-08-2024

ಸುತ್ತೋಲೆ

ರಾಜ್ಯ ಸರ್ಕಾರವು ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಕಾಲಕಾಲಕ್ಕೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಕೋರಿ ಭೂ ಮಾಲಿಕರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಎಲ್‌ಎಸಿ, ಎಲ್‌ಎಸಿಎ, ಎಂಎ, ಓಎಸ್, ರಿಟ್ ಅರ್ಜಿ, ಎಮ್‌ಎಪ್‌ಎ, ಎಂಎಸ್ ಎ, ಎಸ್‌ಎಲ್‌ಪಿ ಮತ್ತು ಇತರ ಪ್ರಕರಣಗಳನ್ನು ದಾಖಲಿಸುತ್ತಿದ್ದು, ಸದರಿ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು ಮತ್ತು ಕೆಲವೊಂದು ಪ್ರಕರಣಗಳಲ್ಲಿ ಇಲಾಖೆಯನ್ನು ಪ್ರತಿವಾದಿ/ ಎದರುದಾರರನ್ನಾಗಿಸಿ ರಾಜ್ಯದ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಮತ್ತು ಮಾನ್ಯ ಸರ್ವೋಚ್ಚ ನ್ಯಾಯಾಲಯದಲ್ಲಿ ದಸವೆಗಳನ್ನು ದಾಖಲಿಸಲಾಗುತ್ತಿದೆ.

ಕಂದಾಯ ಇಲಾಖೆಯ ದಿನಾಂಕ 07-03-2024 ರ ಸುತ್ತೋಲೆ ಹಾಗೂ ದಿನಾಂಕ 9-4-2024 ರ ತಿದ್ದುಪಡಿಯಲ್ಲಿ "ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರದನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಈಗಾಗಲೇ ದಾಖಲಾಗಿ ವಿಚಾರನೆ ನಡೆಯುತ್ತಿರುವ /ಇನ್ನು ಮುಂದೆ ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಎಲ್ ಎ ಸಿ ಓ ಎಸ್ ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಶನ್ ಪಿಟಿಶನ್ ಇತರ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ /ನಿಗಮ /ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುವುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರುವಂತೆ ಸೂಚಿಸಿದೆ

ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯಡಿಯಲ್ಲಿನ ಯೋಜನೆಗಳ ಅನುಷ್ಠಾನಕ್ಕಾಗಿ ಕಂಪನಿ ಕಾಯ್ದೆ 1956 ರನ್ವಯ ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ

ನಿಯಮಿತ ಮತ್ತು ವೀಶ್ವೇರಯ್ಯಜಲ ನಿಗಮ ನಿಯಮಿತ (ಸರ್ಕಾರಿ ಸ್ವಾಮ್ಯದ) 4 ನಿಗಮಗಳನ್ನು ರಚಿಸಲಾಗಿದೆ. ಯೋಜನೆಗಳ ತ್ವರಿತ ಅನುಷ್ಠಾನ ಮಾಡುವ ಹಾಗೂ ಪೂರ್ಣಗೊಂಡ ಯೋಜನೆಗಳ ನಿರ್ವಹಣೆ ಉದ್ದೇಶದಿಂದ ಯೋಜನೆಗೆ ಸಂಬಂಧಿಸಿದ ಎಲ್ಲಾ ಆಸ್ತಿ ಮತ್ತು ಋಣವನ್ನು ಈ ನಿಗಮಗಳಿಗೆ ವರ್ಗಾಯಿಸಲಾಗಿರುತ್ತದೆ. ಈ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಸರ್ಕಾರದಿಂದ ಆಡಳಿತಾತ್ಮಕ ಅನುಮೋದನೆಗೊಂಡು ಪ್ರಗತಿಯಲ್ಲಿರುವ ಯೋಜನೆಗಳು ಹಾಗೂ ಸರ್ಕಾರದಿಂದ ನಿಗಮದ ವ್ಯಾಪ್ತಿ ವರ್ಗಾವಣೆಗೊಂಡು ಎಲ್ಲಾ ಯೋಜನೆಗಳ ಭೂಸ್ವಾಧೀನ ಕಾಮಗಾರಿಗಳ ಅನುಷ್ಠಾನದ ಕಾರ್ಯಕ್ರಮವನ್ನು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿಯೇ ಮುಂದು ವರೆದು ವಿವಿಧ ಯೋಜನೆಗಳಿಗಾಗಿ ನಿಗಮದ ರಚನೆ ಪೂರ್ವದಲ್ಲಿ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡು ನಂತರ ನಿಗಮಕ್ಕೆ ಹಸ್ತಾಂತರಿಸಿದೆ ಹಾಗೂ ನಿಗಮಗಳು ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡು ಜಮೀನುಗಳು ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಗಾರ ಪಾವತಿಸುವಂತೆ ಮತ್ತು ಮಾರುಕಟ್ಟೆ ದರವನ್ನು ಮರು ನಿಗದಿಪಡಿಸುವಂತೆ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಖಾಗುವ ಎಲ್ಲಾ ಪ್ರಕರಣಗಳಲ್ಲಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಆದೇಶಗಳನ್ವಯ ಪರಿಷ್ಕೃತ ಭೂ ಪರಿಹಾರ/ಹೆಚ್ಚುವರಿ ಭೂ ಪರಿಹರವನ್ನು ಭೂಮಾಲೀಕರಿಗೆ ಯೋಜನೆಯನ್ನು ಅನುಷ್ಠಾನಗೊಳಿಸುತ್ತಿರುವ/ನಿರ್ವಹಿಸುತ್ತಿರುವ ನಿಗಮಗಳ ರಾಜ್ಯ ಸರ್ಕಾರಗಳ ಅಯವ್ಯಯದಲ್ಲಿ ಅವುಗಳಿಗೆ ಹಂಚಿಕೆ ಮಾಡುವ ಅನುದಾನದಿಂದ ಪಾವತಿಸಲಾಗಿರುತ್ತಿವೆ.

ಮೇಲ್ಕಂಡ ಅಂಶಗಳ ಹಾಗೂ ಕಂದಾಯ ಇಲಾಖೆಯ ದಿನಾಂಕ 07-03-2023 ರ ಸುತ್ತೋಲೆ ದಿನಾಂಕ 19-04-2024ರ ತಿದ್ದುಪಡಿಯಲ್ಲಿ ಪ್ರಸ್ತಾಪಿಸಿರುವ ಅಂಶಗಳ ಹಾಗೂ ಕಾನೂನು, ನ್ಯಾಯ ಮತ್ತು ಮಾನವ ಹಕ್ಕುಗಳ ಇಲಾಖೆಯು ಟಿಪ್ಪಣಿ ಸಂಖ್ಯೆ:ಲಾ 137 ಅಭಿಪ್ರಾಯ 2024 ದಿನಾಂಕ 1-07-2024 ರಲ್ಲಿ ನೀಡಿರುವ ಅಭಿಪ್ರಾಯದ ಹಿನ್ನೆಲೆಯಲ್ಲಿ ಜಲ ಸಂಪನ್ಮೂಲ ಇಲಾಖೆಯ 4 ನಿಗಮಗಳಡಿಯಲ್ಲಿ ಪ್ರತ್ಯೇಕ ಕಾನೂನು ಕೋಶವಿದ್ದು, ಭೂಸ್ವಾಧೀನಕ್ಕೆ ಸಂಬಂಧಿಸಿದ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣಗಳಲ್ಲಿ --- ಆಗುವ ಅಪೀಲು ದಾಖಲಿಸುವ/ಪರಿಹಾರ ಪಾವತಿಸುವ ಕುರಿತು ನಿಗಮಗಳ ಹಂತದಲ್ಲಿ ಕಾನೂನಾತ್ಮಕವಾಗಿ ಪರಿಶೀಲಿಸಿ/ವಿಮರ್ಶಿಸಿ, ನಿಯಮಾನುಸಾರ ಸೂಕ್ತ ನಿರ್ಣಯಗಳನ್ನು ತೆಗೆದುಕೊಳ್ಳಲು ಕ್ರಮವಹಿಸಲು ಸೂಚಿಸಲಾಗಿದೆ.

(ಕೃಷ್ಣಮೂರ್ತಿ ಬಿ. ಕುಲಕರ್ಣಿ)

ಸರ್ಕಾರದ ಕಾರ್ಯದರ್ಶಿ

ಜಲಸಂಪನ್ಮೂಲ ಇಲಾಖೆ.

To,

LAC No.624/2023

1. The Special Land Acquisition Officer,

Bagalkot Town Development Authority, Bagalkot.

2. The State of Karnataka

Represented by D.C Bagalkot

Name of the applicant:-

Aravind Anaveerappa Telsang,

Age: 62 years,

R/o: Bagalkot

C/o: K.S Deshpande Advocate

Bagalkot, Tq: Dist: Bagalkot.

Sub: Reference application under Section 64 of New Land Acquisition Act, Act No.30 of 2013 In respect of the lands bearing R.S.No.142/2C/1B/3 Acquired portion is 0.36 guntas of Bagalkot in Tq: Dist: Bagalkot acquired for Rehabilitation and Resettlement in LAQ:SR:121/2013-14 dated 15.06.2021.

Sir,

1. Having unsatisfied with the award of the compensation for the above, land the details of which are given above, the petitioner submits the following grounds seeking reference of the award to the court U/Sec.64 of New L. A. Act for proper determination of the compensation and market value as under
2. That the land acquisition has not been correctly described with the actual extent and acquired portion in the acquisition proceedings and I the award apportionment statement and 24(1A) of New L.A.Act notices.
3. That the land acquired in this case is situated in the outskirts of the Bagalkot city towards Navangar and developing portion of the city where developments have taken place and in the vicinity of National and State Highways which have come into existence, industries have been put up, buildings have come into existence, number of Showrooms, educational institutions, Industrial establishments have come up in the vicinity of the

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acquired land with Star Hotels, APMC Yard, Medical College, Agricultural and other Government offices and central market, number of multispecialty Hospitals and other educational institutions.

4. That the land acquired in addition to being situated in the non-agricultural potential locality and in the vicinity of developed and commercial and industrial potential location, it is situated within city municipal limits of Bagalkot which is District Head Quarters and in the vicinity of the Highways having all facilities of transportation, commercial and industrial establishments.
5. That at the time of 11(1) of new L.A. Act notification in the instant case the lands acquired belonging to the petitioner in this case are having very much demand on account of their non-agricultural, commercial and industrial potentialities and thus, the lands under acquisition have to be valued on non-agricultural, commercial and industrial potentialities.
6. That the lands in the vicinity of the acquired lands have been acquired by the Government and the BTDA for various public purposes about 3 to 4 years back with 11(1) of L.A. Act notifications thereon during these years and the owners of those lands have approached the court for enhancement U/Sec.18 of the L.A. Act and the courts have enhanced the market value of the acquired lands in those cases at the rate of more than Rs.5000/- per Sq. Feet and taking into consideration the escalation for 10% per year compared to 11(1) of L.A. Act notifications in the lands acquired, the market value of the property under acquisition in this case is more than Rs.8000/- per Sq. feet as on the date of 11(1) of L.A. Act notification with all other monetary benefits under the Land Acquisition Act.
7. That the claimant is also entitled to various types of monetary benefits, damages, compensation for loss of crops and compensation for existing buildings in the acquired/ lands, borewells, Wells, other infrastructures and thus the claimant is entitled to enhanced compensation for all these infrastructures as provided U/Sec.23 of the L.A. Act under its various heads.
8. That the market value of the fruit trees and other valuable trees like wood, coconut, lemon, Guava, sapota, etc, which were 12 years old at the time of 11(1) notification, have not been properly determined and it is at very lower side.
9. The claimant had applied for conversion of the said land into non-agricultural commercial and industrial use before the 11(1) notification,

but the same was rejected on the grounds of future acquisition by the Government. Therefore, the award now passed is inadequate with reference to the market value which the acquired land could have fetched for such use.

10. The land under acquisition has special adaptability for construction of buildings and infrastructures as the foundation can be secured hardly within 3 to 4 feet depth. Therefore, the market value of the land under acquisition is to be valued on this basis.
11. The already the land under acquisition is situated within developed area having all basic amenities like road, electricity, water supply, UGD and therefore there is no scope for deduction, in the area and development cost if the land is used for residential and commercial purpose.
12. In view of the policy of the Central Government enacting land acquisition legislation and the intention of the Government to provide employment to the affected persons in addition to the compensation to be determined as above, the petitioners are also entitled to all sorts of employment and rehabilitation for their residence and commercial activities from the beneficiary.
13. Though the award is passed on 15.06.2021. Section 24(1) of New L.A. Act notice is served on the claimant/ applicant in the first week of August 2021. Therefore, the right to file reference for enhancement of the compensation accrues on such date i.e. in first week of August-2021. Hence, this petition is filed for enhancement U/Sec.64 of New L.A. Act within 06 weeks from the date of service of notice and it is well within time.
14. Hence, it is prayed to refer the award mentioned above pertaining to the above land belonging to the petitioner to the appropriate authority for proper adjudication of the market value and enhancement of the compensation U/Sec.64 of New L.A. Act.

Place: Bagalkot.

Yours faithfully,

Date: 21.08.2021

Enclosures

1. Copy of the notice under Section 24(1A), served on the applicant/ claimant.

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ಅಡಕ-1



ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ANNEXURE - C-1

ಸಂಖ್ಯೆ: ಆರಾಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ- 1351620)

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 07.03.2024

ಸುತ್ತೋಲೆ

ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರದ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿ / ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ ಮತ್ತು ಸಂಬಂಧಿಸಿದ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿಸಿ ರಾಜ್ಯದಲ್ಲಿ ಹಲವಾರು ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಪ್ರತಿದಿನ ಮೊಕದ್ದಮೆಗಳು ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣಗಳು ಮತ್ತು ಇತರ ಪ್ರಕರಣಗಳಲ್ಲಿ ಜಪ್ತಿ ಆದೇಶಗಳನ್ನು ಹೊರಡಿಸಲಾಗುತ್ತಿದ್ದು, ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡದೇ ಇರುವುದು ಸರ್ಕಾರದ ಗಮನಕ್ಕೆ ಬಂದಿರುತ್ತದೆ.

ಆದುದರಿಂದ, ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅನುಚಿತ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ.

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ)
ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ
(ಭೂಸ್ವಾಧೀನ ಹಾಗೂ ಪುನಿಷ್ಠಿ)
ಕಂದಾಯ ಇಲಾಖೆ.

ಇವರಿಗೆ:

1. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷ್ಣಾಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವಶ್ರವಣ, ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಬೆಂಗಳೂರು/ಮೈಸೂರು/ಕಲ್ಬುರ್ಗಿ/ಬೆಳಗಾವಿ ವಿಭಾಗ.
6. ಎಲ್ಲಾ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು / ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು (ಭೂಸ್ವಾಧೀನ) / ಅಪರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು.
7. ಎಲ್ಲಾ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು.
8. ಎಲ್ಲಾ ಜಿಲ್ಲಾ ಸರ್ಕಾರಿ ವಕೀಲರು/ಅಪರ ಸರ್ಕಾರಿ ವಕೀಲರು/ ಹೆಚ್ಚುವರಿ ಸರ್ಕಾರಿ ವಕೀಲರು.

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Typed copy of Annexure - C-1

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಆರ್.ಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ-1351620) ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ

ಬಹುಮಡಿ ಕಟ್ಟಡ ಬೆಂಗಳೂರು =, ದಿ. 07-03-2024

ಸುತ್ತೋಲೆ

ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್. ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟೀಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಸರ್ಕಾರದ ಮುಖ್ಯ ಕಾರ್ಯದರ್ಶಿ/ ಸರ್ಕಾರದ ಪ್ರಧಾನ ಕಾರ್ಯದರ್ಶಿ, ಕಂದಾಯ ಇಲಾಖೆ ಮತ್ತು ಸಂಬಂಧಿಸಿದ ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿಸಿ ರಾಜ್ಯದಲ್ಲಿ ಹಲವಾರು ನ್ಯಾಯಾಲಯದಲ್ಲಿ ಪ್ರತಿದಿನ ಮೊಕದ್ದಮೆಗಳು ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣಗಳು ಮತ್ತು ಇತರ ಪ್ರಕರಣಗಳಲ್ಲಿ ಜಪ್ತಿ ಆದೇಶಗಳನ್ನು ಹೊರಡಿಸಲಾಗುತ್ತಿದ್ದು ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ನಿಗಮ/ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡದೇ ಇರುವುದು ಸರ್ಕಾರದ ಗಮನಕ್ಕೆ ಬಂದಿರುತ್ತದೆ.

ಆದುದರಿಂದ ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್. ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟೀಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ನಿಗಮ/ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅ.ಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ.

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ)

ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ

(ಭೂಸ್ವಾಧೀನ ಹಾಗೂ ಪುನಿಷ್ಠ ಕಂದಾಯ ಇಲಾಖೆ)

22

ಅಡಕ-1

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ANNEXURE - C-2

ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 04 ಎಲ್‌ಸಿಎ 2024 (ಇ-1351620)

ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಸಚಿವಾಲಯ,
ಬಹುಮಹಡಿಗಳ ಕಟ್ಟಡ,
ಬೆಂಗಳೂರು, ದಿನಾಂಕ: 19.04.2024

ತಿದ್ದುಪಡಿ

ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 04 ಎಲ್‌ಸಿಎ 2024 (ಇ-1351620), ದಿನಾಂಕ: 07.03.2024ರ

ಎರಡನೆಯ ಹಾಗೂ ಕೊನೆಯ ಪ್ರಾರಾವನ್ನು ಈ ಕೆಳಕಂಡಂತೆ ತಿದ್ದಿ ಓದಿಕೊಳ್ಳತಕ್ಕದ್ದು.

DATE	22/04/2024
M.D.	ಅದುದರಿಂದ, ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯಿದೆಯಡಿ ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ
C.E.	ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಈಗಾಗಲೇ ದಾಖಲಾಗಿ ವಿಚಾರಣೆ ನಡೆಯುತ್ತಿರುವ / ಇನ್ನು ಮುಂದೆ ದಾಖಲಾಗುವ ಎಲ್ಲಾ
H.M.A.	ಎಲ್.ಎ.ಪಿ. ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸ್‌ಕ್ಯೂಷನ್ ವಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ
G.M.F.	ಹಂತದಲ್ಲಿಯೇ ಅಕ್ವೇಷನ್‌ಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/
C.S.	ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ.

KRISHNA BHAGYA JALA NIGAM LTD.
Regd. Office: P.W.D. Office Annexe
3rd Floor, K.R. Circle, Bengaluru-01

22 APR 2024

No:...

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ)
ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ
(ಭೂಸ್ವಾಧೀನ, ಪುನರ್ವಸತಿ
ಮತ್ತು ಪುನರ್ನಿರ್ಮಾಣ)
ಕಂದಾಯ ಇಲಾಖೆ.

ಇವರಿಗೆ:

1. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕರ್ನಾಟಕ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
2. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕಾವೇರಿ ನೀರಾವರಿ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
3. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ಕೃಷ್ಣಾಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
4. ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು, ವಿಶ್ವೇಶ್ವರಯ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ, ಬೆಂಗಳೂರು.
5. ಪ್ರಾದೇಶಿಕ ಆಯುಕ್ತರು, ಬೆಂಗಳೂರು/ಮೈಸೂರು/ಕಲ್ಬುರ್ಗಿ/ಬೆಳಗಾವಿ ವಿಭಾಗ.
6. ಎಲ್ಲಾ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು / ವಿಶೇಷ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು (ಭೂಸ್ವಾಧೀನ) / ಅಪರ ಜಿಲ್ಲಾಧಿಕಾರಿಗಳು
7. ಎಲ್ಲಾ ಉಪವಿಭಾಗಾಧಿಕಾರಿ ಮತ್ತು ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು, ವಿಶೇಷ ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳು
8. ಎಲ್ಲಾ ಜಿಲ್ಲಾ ಸರ್ಕಾರಿ ವಕೀಲರು/ಅಪರ ಸರ್ಕಾರಿ ವಕೀಲರು/ ಹೆಚ್ಚುವರಿ ಸರ್ಕಾರಿ ವಕೀಲರು.

25 23

C2
Typed copy of *Ammejune* - C-2

ಕರ್ನಾಟಕ ಸರ್ಕಾರ

ಸಂಖ್ಯೆ: ಆರ್.ಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ-1351620) ಕರ್ನಾಟಕ ಸರ್ಕಾರದ
ಸಚಿವಾಲಯ

ಬಹುಮಡಿ ಕಟ್ಟಡ ಬೆಂಗಳೂರು =, ದಿ. 19-04-2024

ತಿದ್ದುಪಡಿ

ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್‌ಡಿ 04 ಎಲ್‌ಸಿಎ 2024(ಇ-1351620)
ದಿನಾಂಕ 07-03-2024 ರ ಎರಡನೆಯ ಹಾಗೂ ಕೊನೆಯ ಪ್ಯಾರಾವನ್ನು ಈ
ಕೆಳಕಂಡಂತೆ ತಿದ್ದಿ ಓದಿಕೊಳ್ಳತಕ್ಕದ್ದು.

ಆದುದರಿಂದ ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ
ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನ ಕಾಯ್ದೆಯಡಿ
ಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ
ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಈಗಾಗಲೇ
ದಾಖಲಾಗಿ ವಿಚಾರಣೆ ನಡೆಯುತ್ತಿರುವ ಇನ್ನು ಮುಂದೆ ದಾಖಲಾಗುವ
ಎಲ್ಲಾ ಎಲ್.ಎ.ಸಿ ಓಎಸ್. ರಿಟ್ ಮತ್ತು ಎಕ್ಸಿಕ್ಯೂಷನ್ ಪಿಟೀಷನ್
ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾಥಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆಕ್ಷೇಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ
ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ನಿಗಮ/ಮಂಡಳಿಗಳನ್ನು
ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು
ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ
ತರಲು ಸೂಚಿಸಿದೆ.

(ಬಿ.ಆರ್.ಮಂಜುನಾಥ)

ಸರ್ಕಾರದ ಉಪ ಕಾರ್ಯದರ್ಶಿ

(ಭೂಸ್ವಾಧೀನ ಹಾಗೂ ಪುನಿಷ್ಠ) ಕಂದಾಯ
ಇಲಾಖೆ



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ಅಡ-3

C-3

ಕೃಷ್ಣಾ ಭಾಗ್ಯ = ನಿಗಮ ನಿಯಮಿತ
(ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಉದ್ಯಮ)

Krishna Bhagya Jala Nigam Limited

(A Government of Karnataka Undertaking)

ಸಂಖ್ಯೆ:ವ್ಯ.ನಿ./ಕೃಭಾಜನಿನಿ/ಪ್ರವ್ಯ(ಅ)/ಸಿ-2/2024-25/161

ದಿನಾಂಕ: 23.04.2024

:: ಕಛೇರಿ ಆದೇಶ ::

ವಿಷಯ :- ಶ್ರೀ ಸುಧೀರ್ ಸಜ್ಜನ್, ಉಪ ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರವರ ಕಛೇರಿ, ಆಲಮಟ್ಟಿ, ಇವರನ್ನು ನಿಗಮದ ಭೂಸ್ವಾಧೀನದ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣಗಳಿಗೆ (LAC Matters) ಸಂಬಂಧಿಸಿದಂತೆ ನೋಡಲ್ ಅಧಿಕಾರಿಯನ್ನಾಗಿ ನೇಮಿಸುವ ಕುರಿತು.

ಉಲ್ಲೇಖ:- ಸರ್ಕಾರದ ಸುತ್ತೋಲೆ ಸಂಖ್ಯೆ: ಆರ್.ಡಿ. 04 ಎಲ್.ಸಿ.ಎ 2024 (ಇ-1351620) ದಿನಾಂಕ:19.04.2024

ಮೇಲ್ಕಂಡ ವಿಷಯಕ್ಕೆ ಸಂಬಂಧಿಸಿದಂತೆ, ಶ್ರೀ ಸುಧೀರ್ ಸಜ್ಜನ್, ಉಪ ಮುಖ್ಯ ಇಂಜಿನಿಯರ್, ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರವರ, ಕೃಭಾಜನಿನಿ, ಆಡಳಿತ ಮತ್ತು ನೋಂದಾಯಿತ ಕಛೇರಿ, ಆಲಮಟ್ಟಿ, ಇವರನ್ನು ವಿವಿಧ ಜಿಲ್ಲಾ ಮಟ್ಟದ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ಬಾಕಿ ಇರುವ ನಿಗಮದ ಭೂಸ್ವಾಧೀನ (LAC Matters) ಪ್ರಕರಣಗಳನ್ನು ಸಮರ್ಪಕವಾಗಿ ನಿರ್ವಹಿಸಲು ನೋಡಲ್ ಅಧಿಕಾರಿಯನ್ನಾಗಿ ತಕ್ಷಣದಿಂದ ಜಾರಿಗೆ ಬರುವಂತೆ ನೇಮಿಸಿ ಆದೇಶಿಸಿದೆ.

ಸದರಿಯವರು ಈ ಕೆಳಕಂಡ ಅಂಶಗಳ ಬಗ್ಗೆ ಮುಂದಿನ ಕ್ರಮ ಕೈಗೊಳ್ಳಲು ನಿರ್ದೇಶಿಸಲಾಗಿದೆ:

- (i) ಕೃ.ಮೆ.ಯೋ. ಗೆ ಸಂಬಂಧಿಸಿದಂತೆ ಈಗಾಗಲೇ ವಿವಿಧ ಜಿಲ್ಲಾ ಮಟ್ಟದ ಸಿವಿಲ್ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗಿರುವ ನಿಗಮದ ಭೂಸ್ವಾಧೀನ (LAC Matters) ಪ್ರಕರಣಗಳಲ್ಲಿ ಅಕ್ಷೇಪಣಾ ಹೇಳಿಕೆಯನ್ನು ಸಲ್ಲಿಸುವುದು, ಅಗತ್ಯ ದಾಖಲಾತಿಗಳನ್ನು ವಕೀಲರಿಗೆ/ನ್ಯಾಯಾಲಯ ಒದಗಿಸುವುದು
- (ii) ಸದರಿ ನ್ಯಾಯಾಲಯ ಪ್ರಕರಣಗಳ ಕುರಿತು ಸಮಗ್ರ ವರದಿಯನ್ನು ಪ್ರತಿ ತಿಂಗಳು ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರ ಕಛೇರಿಗೆ ಸಲ್ಲಿಸುವುದು.
- (iii) ಸದರಿ ಭೂಸ್ವಾಧೀನ ಪ್ರಕರಣಗಳಲ್ಲಿ ನಿಗಮವನ್ನು ಪ್ರತಿಪಾದಿಯನ್ನಾಗಿ (Impleading KBJNL as a party) ಮಾಡಲು ಅಗತ್ಯ ಕ್ರಮ ಕೈಗೊಳ್ಳುವುದು.
- (iv) ಸದರಿ ಪ್ರಕರಣಗಳಿಗೆ ಸಂಬಂಧಿಸಿದ ವಿಭಾಗೀಯ ಕಛೇರಿ, ಭೂಸ್ವಾಧೀನಾಧಿಕಾರಿಗಳ ಕಛೇರಿ ಹಾಗೂ ವಕೀಲರೊಂದಿಗೆ ಸಮನ್ವಯ ಸಾಧಿಸುವುದು ಹಾಗೂ ಪ್ರಕರಣಗಳನ್ನು ಸಮರ್ಪಕವಾಗಿ ನಿರ್ವಹಿಸಲು ಎಲ್ಲಾ ಅಗತ್ಯ ಕ್ರಮಗಳನ್ನು ಕೈಗೊಳ್ಳುವುದು.
- (v) ಸದರಿ ನಿರ್ವಹಣಾ ಕಾರ್ಯಗಳಿಗೆ ಅಗತ್ಯವಿರುವ ಸಿಬ್ಬಂದಿ/ ವಕೀಲರ ಅಗತ್ಯತೆಯ ಬಗ್ಗೆ ಕೋರಿಕೆಯನ್ನು ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರವರಿಗೆ ಸಲ್ಲಿಸುವುದು.

(ಮೋಹನ್ ರಾಜ್ ಕೆ.ಪಿ ಭಾ.ಅ.ಪೆ)

ವ್ಯವಸ್ಥಾಪಕ ನಿರ್ದೇಶಕರು

ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ

ಬೆಂಗಳೂರು

23.04.24

ಆವೃತ ಮತ್ತು ನೋಂದಾಯಿತ ಕಛೇರಿ: ಆಲಮಟ್ಟಿ ಅನೇಕಟ್ಟು ಪ್ರದೇಶ, ಆಲಮಟ್ಟಿ-586 201, ತಾ: ನಿದಗುಂದಿ, ಜಿ: ವಿಜಯಪುರ

ಸಂಪರ್ಕ ಕಛೇರಿ: ಲೋಕೋಪಯೋಗಿ ಪೂರಕ ಕಟ್ಟಡ, 3ನೇ ಮಹಡಿ, ಕೆ.ಆರ್. ವೃತ್ತ, ಬೆಂಗಳೂರು - 560 001.

Administrative & Registered Office : Almatli Dam Site, Almatli-586 201, Tq: Nidagundi, Dist: Vijayapura

Liaison Office : PWD Offices Annexe Building, 3rd Floor, K.R. Circle, Bengaluru - 560 001.

Phone (O) 080-22292261, 22244484, 22245328, Fax: 080-22219470

CIN: U65320KA1994SGC016101 / Website: kbjnlgov.org / Email: kbjnlgov@gmail.com



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ಕೃಷ್ಣಾ ಭಾಗ್ಯ ಜಲ ನಿಗಮ ನಿಯಮಿತ
(ಕರ್ನಾಟಕ ಸರ್ಕಾರದ ಉದ್ಯಮ)

Krishna Bhagya Jala Nigam Limited
(A Government of Karnataka Undertaking)

No.CS/421-F/2024-25/1296

Dated: 22.07.2024

ANNEXURE

**AUTHORISATION TO SIGN VAKALATHNAMA AND OTHER PAPERS FOR
FILING BEFORE THE COURT.**

Krishna Bhagya Jala Nigam Limited is wholly owned Government of Karnataka Company, having its registered office in Almatti, Vijayapura Dist., and Liason office in Bengaluru. There are land acquisition cases and other cases coming up at various Mofussil and District Courts concerned to Upper Krishna Project. In many of such cases the Managing Director is also a party along with other engineers/officers. Hence on behalf of the MD, The Deputy Chief Engineer and Nodal Officer - LAC, Administrative Office, Almatti, be and is hereby authorised to sign the vakalathnama, statement of objections, etc., before such courts as per the advice of the appointed Company's advocate.

This is for kind information of the concerned.


(MOHAN RAJ K P, IAS) 24/7/24
MANAGING DIRECTOR
KRISHNA BHAGYA JALA NIGAMA LIMITED

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ANNEXURE - E-

LAC No.624/2023

IN THE COURT OF HON'BLE II ADDL DISTRICT AND SESSIONS

JUDGE, BAGALKOT AT: BAGALKOT

1. Aravinda Telasang

...claimant

v/s

1. The SLAO, BTDA Bagalkot

...Respondents

IA. No. ____/2024

1. The Managing Director

Krishna Baghya Jala Nigama Limited (KBJNL)

Almatti
Respondent

...Applicant/ Proposed

V/s

1. Aravind Telasang

...Opponent/s.

(Ori.Climant/s)

**APPLICATION UNDER ORDER 1 RULE 10 OF CODE OF CIVIL
PROCEDURE**

For the reasons stated in the accompanying memo of facts the Hon'ble court be pleased to implead this applicant as Respondent.No.3 as a necessary party to the instant case in interest of justice and equity.

Advocate for Applicant

Filed in Bagalkot on 08/01/2025

(R.T Hosamani)

KBJNL,BTDA

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LAC NO. 624/2023

IN THE COURT OF HON'BLE II ADDL DISTRICT AND SESSIONS

JUDGE, BAGALKOT AT: BAGALKOT

1. Aravind Telasang

...Claimant

v/s.

1. The SLAO, BTDA Bagalkot

...Respondents

MEMO OF FACTS

Herein I am the advocate on record in this instant case and I am well conversant with the facts and circumstances of this case I submits this memo of facts on behalf of Respondent as under:

1. The Hon'ble Supreme Court of India in M/S Neyvely Lignite Corpn. Ltd Vs. Special Tahsildar (Land Acquisition) held that, the beneficiary to required to be made a party in the land acquisition matters as the compensation are released by the beneficiary. The judgment is reported in (1995) 1 SCC 221. The proposed respondent is beneficiary and going to pay the compensation to the claimants. Hence the applicant proposed respondent is very much necessary party in this petition.

2. That as per Government Office of the under secretary (land Acquisition and P and R) Revenue Department Bagalore Circular No. R.D./04/LAC/2024 (E-1351620) Dated 07-03-2024 it is very much essential to I am essential to implead the managing Director Krishna Bhagya Jala Nigam Limited (KBJNL) Almatti in this case for fair and proper adjudication of the case.

3. That no harm or prejudice would be cause to the opponents if this application is allowed and on the other hand if my application is not allowed I would be put to great hardship and irreparable loss.

THEREFORE Hon'ble court be pleased to implead this applicant as proposed Respondent. No. 3 As a necessary party to the instant case in interest of justice and equity.

Filed in Bagalkot on 08/01/2025

Advocate for Proposed Respondent

(R.T Hosamani)

IN THE COURT OF HON'BLE II ADDL DISTRICT & SESSIONS
JUDGE AND LAND ACQUISITION AND REHABILITATION AND
RESETTLEMENT AUTHORITY BAGALKOT AT: BAGALKOT

L.A.C No: 624/2023

01) Sri.Aravind Anavirappa Telsang of Bagalkot ...Petitioner

V/s

01) The S.L.A.O, B.T.D.A Bagalkot and another ...Respondents

OBJECTIONS TO I. A. DATED 08-01-2025

Herein, the advocate for petitioner humbly begs to submit the objections to I. A. dated 08-01-2025 filed by the proposed respondent No. 3 under the provisions of Order I Rule 10 of C.P.C as under:

2. That the contents of the memo of facts accompanying I. A. are false and not admitted except those which are specifically admitted by the petitioner.
3. It is not true to allege that the proposed respondent is a beneficiary and is very much necessary party in this petition. The proposed respondent has quoted the Circular Issued by the Revenue Department but has not produced the same. It is false to contend that no harm or prejudice will be caused to the petitioner if the application is allowed.
4. No grounds are made out by the proposed respondent for impleading him as respondent No. 3 in this case. The application is filed at the belated stage with the ulterior motive to drag on the proceedings and no reasons are mentioned for the inordinate delay in filing the application.
5. The citation mentioned by the proposed respondent in the memo of facts is not applicable to the present case. Viewed from any angle the application is not maintainable.
6. Hence, it is humbly prayed that the Hon'ble Court be pleased to reject the application as not maintainable in the interest of justice.

Bagalkot

13-01-2025

Advocate for petitioner

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R. K. S.

RTM

**IN THE COURT OF THE II ADDL. DISTRICT JUDGE AND
ADDL. LAND ACQUISITION, REHABILITATION AND
RESETTLEMENT AUTHORITY, BAGALKOTE.**

ANNEXURE-4-

Present: Sri. G. A. Mulimani, M.A., LL.M.,
II Addl. District Judge & the Land Acquisition,
Rehabilitation and Resettlement Authority, Bagalkote.

Dated this the 25th day of March, 2025

L.A.C. No.625/2023 C/w. L.A.C. Nos.597/2023,
598/2023 & 624/2023.

Claimant in LAC No.625/2023:

Shrikant Anaveerappa Telasang.

Claimant in LAC No.597/2023:

Jayashree W/o. Shrikant Telasang.

Claimant in LAC No.598/2023:

Basavaraj Anaveerappa Telasang.

Claimant in LAC No.624/2023:

Aravind Anaveerappa Telasang.

Vs.

Respondents:

The SLAO, BTDA Bagalkote & another.

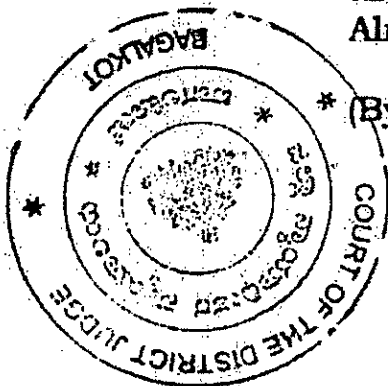
PARTIES IN I.A.

Applicant/Proposed Respondent:

The Managing Director,
Krishna Bhagya Jala Nigama Ltd. (KBJNL),
Almatti.

(By Sri. R.T.Hosamani, Advocate)

25/3/2025



Vs. [illegible]
Opponents/Original Claimants:

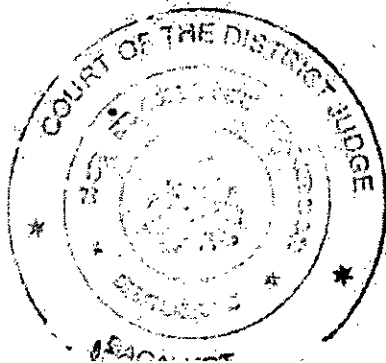
1. Shrikant Anavecrappa Telasang.
2. Jayashree W/o. Shrikant Telasang.
3. Basavaraj Anavecrappa Telasang.
4. Aravind Anavecrappa Telasang.

(By Sri. M.A. Telsang, Advocate)

ORDER ON APPLICATION UNDER ORDER 1
RULE 10 OF CPC

The applicant has filed the separate applications under Order 1 Rule 10 of CPC to implead him as respondent No.3 in all clubbed cases, as he is necessary party in the present case.

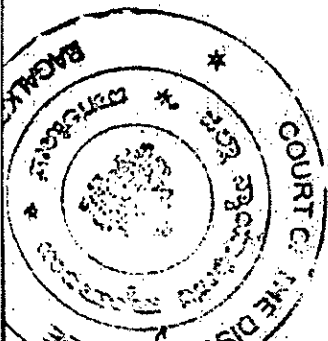
2. The learned counsel for the proposed respondent No.3 has contended in his memo of facts that, the Hon'ble Supreme Court of India in M/s. Neyveli Lignite Corporation Ltd., Vs. Special Tahasildar (Land Acquisition) held that, the beneficiary required to be made a party in the land acquisition matters as the compensation are released by the beneficiary. The Judgment is reported in



[Handwritten signature]
8/2/2025

(1995) 1 SCC 221. The proposed respondent is beneficiary and going to pay the compensation to the claimants. Hence, the applicant/proposed respondent is very much necessary party in this case. That as per Government Office of the Under Secretary (Land Acquisition and P and R) Revenue Department Bengaluru Circular No.R.D./04/LAC/2024 (E-1351620) dated 7.3.2024. It is very much essential to implead the Managing Director, Krishna Bhgya Jala Nigama Limited (KBJNL), Almatti, in this case for fair and proper adjudication of the case. That no harm or prejudice would be caused to the opponents if this application is allowed and on the other hand if his application is not allowed he would be put to great hardship and irreparable loss.

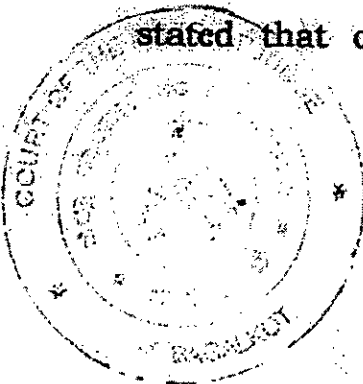
3. The learned counsel for claimants has submitted his separate objections in the above said clubbed cases inter-alia contending that, the contents of memo of facts accompanying with I.A., are false and not admitted except those which are specifically admitted by



20/03/2025

the petitioners. It is not true to allege that the proposed respondent is a beneficiary and is very much necessary party in these petitions. The proposed respondent has quoted the Circular issued by the Revenue Department but has not produced the same. It is false to contend that, no harm or prejudice will be caused to the petitioners if the application is allowed. No grounds are made out by the proposed respondent for impleading him as respondent No.3 in this case. The application is filed at the belated stage with the ulterior motive to drag on the proceedings and no reasons are mentioned for the inordinate delay in filing the application. The citation mentioned by the proposed respondent in the memo of facts is not applicable to the present case. Viewed from any angle the application is not maintainable. Hence, it is humbly prayed to reject the application as not maintainable in the interest of justice.

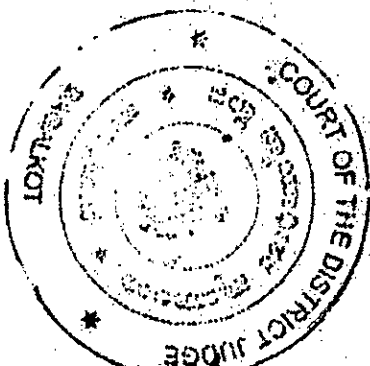
4. Further contended that, in the memo facts, it is stated that on the basis of "Circular" issued by the



8/8/25
25/10/25

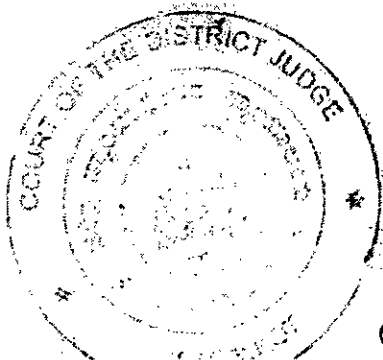
Government it is necessary to make M.D., KBJNL as a necessary party in the proceedings. This is not proper procedure on the basis of Circular, Court cannot be made as a party and Government Circular is not binding on the Court. Unless there is Gazette Notification or any law they cannot seek proposed respondent No.3 be made as a party only on the basis of memo of facts of Advocate. They have not produced any documents to show that, under these documents, he is seeking impleading application. Hence, such applications without any document or Gazette Notification are not maintainable under law.

5. Further contended that, since 2013-14, when the acquisition proceedings were initiated, the claimants lost their property rights and without any fruits. If these applications are allowed the claimants will be put into greater hardship and mental agony and heavy loss. If it is rejected, no harm or loss will be caused to the proposed respondent No.3. Already the person who acquired the property and representative of Government i.e., Deputy



8/25/2025

Commissioner are already parties in these proceedings and they have filed their detail objections and they have cross-examined the claimants in detail and evidence is closed on the side of claimants. Thereafter, the respondent evidence is closed. Hence, under such circumstances, these applications are not maintainable. Only on the ground that he is main beneficiary to implead as respondent No.3. Already who is acquired the property i.e., SLAO BTDA and Deputy Commissioner represented by Government are worked as beneficiary on behalf of respondent No.3. Even U/Secs.4(1), 6(1) or 11(1) of New Act, it is clearly mentioned that, as per Government Order and Gazette Notification U/Sec.4(1) or 11(1) the power has been delegated to the SLAO, BTDA to conduct the acquisition proceedings and fix the market value as per Secs.12 & 43 of L.A. Act, 2013. Hence, no need to implead as necessary parties. Only to harass the claimants these false applications without affidavit filed. Only to prolong the matter such applications are filed. Hence, the applications are not maintainable under law. Hence, for the above said



25/12/2020

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reasons and grounds, urged at the time of arguments, the applications be dismissed with costs.

6. Heard the arguments on both side counsels.

7. On going through the available materials, the point that arises for my consideration is as under:

1. Whether the applicant has made out a sufficient ground to implead him as a respondent No.3 as necessary party?

2. What Order?

8. My finding on the above points are as under:

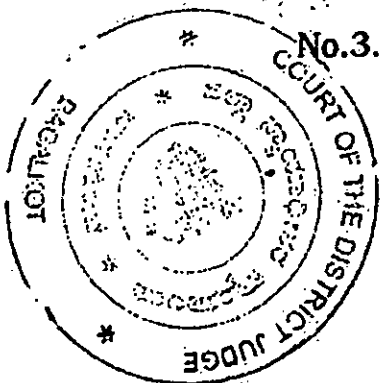
Point/No.1 : In the Negative;

Point No.2 : As per final order, for the following:

REASONS

8. Point No.1: The learned counsel for the proposed respondent No.3 has vehemently argued that, as per the circular and judgment reported in (1995) 1 SCC 221, respondent is beneficiary and going to pay the compensation to the claimants, hence he is the necessary party, as such sought for impleading him as respondent

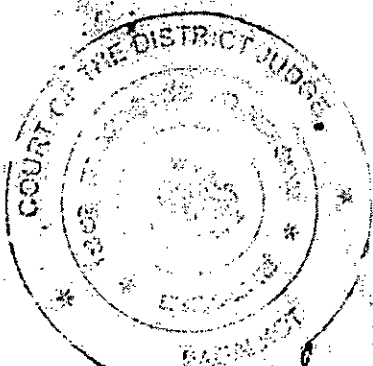
No.3.



22/12/23

9. Per contra, the learned counsel for the claimants has vehemently argued that, the applications are not maintainable in the belated stage. As per the circular the applicant ought to have been impleaded himself in the initial stage of the proceedings. In this case, applicant has filed these applications, when the case was posted for evidence. Further the applicant has filed these applications without proper Vakalath. Hence, prayed for reject the applications.

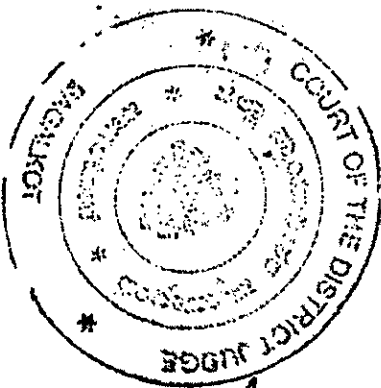
10. On perusal of the available materials and rival contention of both the counsels, admittedly these cases were registered on 12.4.2023 in LAC Nos.625/2023 & 624/2023 and on 11.4.2023 in LAC Nos.597/2023 & 598/2023 on the basis of the reference referred by the SLAO, BTDA, Bagalkote to this authority U/Sec.64 of RFCTLARR Act. When the case was posted for evidence, the applicant has filed these applications on 8.1.2025. Therefore, the present applications filed by the applicant in belated stage.



8.1.2025

11. On perusal of the application, the learned counsel for the applicant has stated in his memo of facts filed in support with the present application stating that, it is very much essential to implead the Managing Director, KBJNL, Almatti in this case. However, in support of the said application the learned counsel for the applicant has filed Vakalath on behalf of the Managing Director, KBJNL, Almatti authorized and represented by its Nodal Officer and Deputy Chief Engineer, LAC, KBJNL, Almatti and the said Vakalath is not signed by the M.D., KBJNL, Almatti, it is signed by the Deputy Chief Engineer and Nodal Officer, LAC, KBJNL.

12. It is pertinent to note that, the said application is filed on behalf of the M.D., KBJNL, Almatti, he has to signed on the Vakalath. If the M.D., KBJNL, Almatti authorized the Deputy Chief Engineer, it is the duty of the applicant to produce the valid document regarding delegation of power. Even though the M.D., has to delegated the power, the Vakalath has to be signed by the



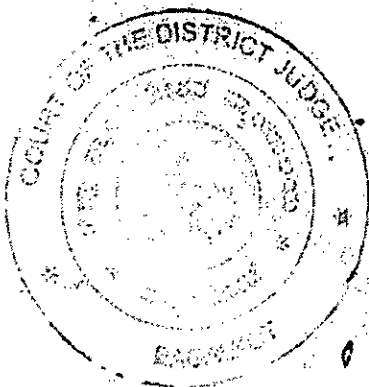
808/2023

M.D., then only he can delegate the powers to authorized persons as per law.

13. On perusal of the circular issued by the Government of Karnataka bearing No.R.D./04/LCA/2024 (E-1351620) dated 7.3.2024. It is mentioned in the para-2 of the said circular, it is necessary to reproduce for the sake of better convenience as under:

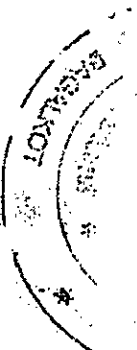
“ಆದುದರಿಂದ, ಕೇಂದ್ರ ಮತ್ತು ರಾಜ್ಯ ಸರ್ಕಾರದ ವಿವಿಧ ಯೋಜನೆಗಳ ಕಾಮಗಾರಿಗೆ ಸಂಬಂಧಪಟ್ಟಂತೆ ಭೂಸ್ವಾಧೀನಪಡಿಸಿಕೊಂಡ ಜಮೀನುಗಳ ಸಂಬಂಧ ಹೆಚ್ಚುವರಿ ಪರಿಹಾರಧನ ಪಾವತಿಸುವಂತೆ ಕೋರಿ ಮಾನ್ಯ ನ್ಯಾಯಾಲಯಗಳಲ್ಲಿ ದಾಖಲಾಗುವ ಎಲ್ಲಾ ಎಲ್.ಎ.ಸಿ., ಓ.ಎಸ್., ರಿಟ್ ಮತ್ತು ಎಕ್ಸ್‌ಕ್ಯೂಷನ್ ಪಿಟಿಷನ್ ಪ್ರಕರಣಗಳಲ್ಲಿ ಪ್ರಾದಮಿಕ ಹಂತದಲ್ಲಿಯೇ ಆರ್ಜಿಪಣೆಗಳನ್ನು ಸಲ್ಲಿಸುವಾಗ ಸಂಬಂಧಪಟ್ಟ ಫಲಾನುಭವಿ ಇಲಾಖೆ/ ನಿಗಮ/ಮಂಡಳಿಗಳನ್ನು ಪ್ರತಿವಾದಿಗಳನ್ನಾಗಿ ಮಾಡುವುದು ಅವಶ್ಯಕ ಮತ್ತು ಕಡ್ಡಾಯ ಎಂಬುದನ್ನು ಸಂಬಂಧಪಟ್ಟ ಸರ್ಕಾರಿ ವಕೀಲರು ಮಾನ್ಯ ನ್ಯಾಯಾಲಯದ ಗಮನಕ್ಕೆ ತರಲು ಸೂಚಿಸಿದೆ”.

14. I have carefully gone through the above said circular, it is clearly mentioned that, the beneficiary Limited/Boards are necessary to implead in all the LAC, O.S., Writ, Execution Petition at the *initial stage*. In the instant case, this case is posted for Await Commissioner's



Handwritten signature and date 05/10/25

Report and nothing is left to post the matter for arguments. Taking into consideration of the discussion made in supra paras, it is crystal clear that, the application itself is not maintainable in the belated stage. Further the M.D., KBJNL, Almatti has not signed the Vakalath, though intend to implead him as respondent No.3. Furthermore no document pertaining to delegation of power by the M.D., KBJNL, Almatti to Deputy Chief Engineer and Nodal Officer - LAC, KBJNL, Almatti. Even as per their own circular issued by the Government of Karnataka bearing No.R.D./04/LCA/2024 (E/1351620) dated 7.3.2024. It is mentioned in the para-2 of the said circular that, the beneficiary Limited/Boards are necessary to implead in all the LAC, O.S., Writ, Execution Petition at the **initial stage**. Therefore, the application filed by the applicant is contrary to the said circular. Under these circumstances and foregoing reasons, I am of the opinion that, the applicant has not made out sufficient grounds to allow the I.A., under Order 1 Rule 10 of CPC. Hence, I answer point No.1 is in the negative.



[Handwritten signature]
25/2/2025

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15. Point No.2: In view of the discussion made in supra paras, this Court proceed to pass the following:

ORDER

The applications filed in all the clubbed cases bearing L.A.C. No.625/2023 C/w. L.A.C. Nos.597/2023, 598/2023 & 624/2023 by the learned counsel for the applicant/proposed respondent No.3 under Order 1 Rule 10 of CPC are hereby rejected, as such no order as to costs.

Office is directed to keep the copies of the Order in L.A.C. Nos.597/2023, 598/2023 & 624/2023.

(Dictated to the Stenographer Grade-I directly on the computer, print-out taken out by him, corrected and then pronounced by me in the open court on this the 25th day of March, 2025.)

[Signature]

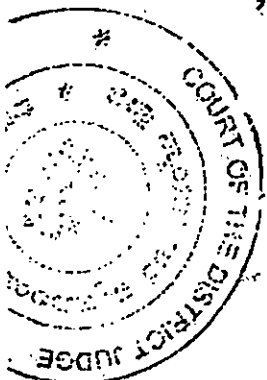
(G. A. Mulimani)

II Additional District Judge &
Additional Land Acquisition,
Rehabilitation & Resettlement Authority,
Bagalkote.

For the Court, a copy of the original
all the matter appearing
original has been faithfully
copied with no modifications.

[Signature]
with Monthly Remuneration

1. Copy adopted for use	28-3-25
2. Copying charges	remitted to be progressed
3. Copying charges	produced on
4. Applicant required to appear	28-3-25
5. Applicant appeared on	28-2-25
6. Copy ready on	28-3-25
7. Copy delivered on	28-3-25
8. Costed by	remitted
9. Approved by	As per





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IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 23RD DAY OF NOVEMBER, 2024

BEFORE

THE HON'BLE MR JUSTICE HANCHATE SANJEEVKUMAR

MISCELLANEOUS SECOND APPEAL NO.119 OF 2023 (LA)

BETWEEN:

SRI. C. B. POOJARAPPA
S/O BASADISIDDAIAH
AGED ABOUT 84 YEARS
R/AT CHELUR VILLAGE
GUBBI TALUK
TUMAKURU DISTRICT - 577 223.

...APPELLANT

(BY SRI. V. B. SIDDARAMAIAH., ADVOCATE)

AND:

1. THE SPECIAL LAND ACQUISITION OFFICER
HEMAVATHI CANAL ZONE
TUMAKURU
TUMAKURU DISTRICT - 572104.

2. KAVERI NIRAVARI NIGAMA
REPRESENTED BY ITS
MANAGING DIRECTOR
ANAND RAO CIRCLE
BENGALURU.

...RESPONDENTS

(BY SRI. K.S. BEHEEMAIAH ADVOCATE FOR R2;
SRI. RAJENDRA K.R. AGA FOR R1)

THIS MSA FILED UNDER SEC.54(2) OF THE LAND ACQUISITION ACT., AGAINST THE JUDGMENT AND AWARD DATED 17.02.2018 PASSED IN RA NO.276/2017 ON THE FILE OF II ADDITIONAL DISTRICT AND SESSIONS JUDGE, TUMAKURU PARTLY ALLOWING THE APPEAL AND MODIFYING THE JUDGMENT AND AWARD DATED 03.11.2011 PASSED IN LAC NO.278/2006 ON THE FILE OF PRINCIPAL SENIOR CIVIL

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JUDGE, GUBBI, PARTLY ALLOWING THE PETITION FILED UNDER SEC.18 OF KARNATAKA LAND ACQUISITION ACT.

THIS APPEAL, COMING ON FOR ADMISSION, THIS DAY, JUDGMENT WAS DELIVERED THEREIN AS UNDER:

CORAM: HON'BLE MR JUSTICE HANCHATE SANJEEVKUMAR

ORAL JUDGMENT

This Miscellaneous Second appeal is filed by the claimant challenging the judgment and award dated 17.02.2018 in R.A.No.276/2017 passed by II Additional District & Sessions Judge, Tumakuru and judgment and award dated 03.11.2011 in LAC.No.278/2006 passed by the Senior Civil Judge and JMFC, Gubbi, seeking enhancement of compensation.

2. Heard the argument of learned counsel from both side and perused the records.

3. It is the case of the claimant that the claimant is the absolute owner of the land bearing Survey No.21, measuring 02 acre 22 guntas consisting

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of standing trees thereon, situated at Chelur Hobli,
Gubbi Taluk.

4. The relevant details of the compensation
awarded to the claimant are as under:

1	Preliminary Notification issued under Section 4(1) of Land Acquisition Act, 1894	06.05.1992
2	Final Notification issued under Section 6(1) of Land Acquisition Act, 1894	14.10.1993
3	Date of passing the award by SLAO	17.02.1995
4	Award of SLAO	Rs.51,510/- for 2 acre 21 guntas of land (Rs.510/- per gunta); Rs.1,20,507/- for 155 coconut trees (Rs.777.46/- for each coconut tree) and Rs.16,875/- for 3 mango trees (Rs.5,625/- for each mango tree)

5. Being aggrieved by inadequate compensation, reference was made under Section 18(1) of the Act and the Reference Court has awarded compensation of Rs.1,02,000/- for 02 acre 22 guntas of land (Rs.40,400/- per acre); Rs.3,74,945/- for 155 coconut trees (Rs.2,419.00/- for each coconut tree)

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and Rs.16,875/- for three mango trees (Rs.5,625/- for one tamarind tree).

6. Upon appeal before the First Appellate Court, the compensation for the land was enhanced to Rs.2,02,000/- for 02 acre 22 guntas of land (Rs.80,000/- per acre); Rs.11,62,500/- for 155 coconut trees (Rs.7,500/-for one coconut tree)and enhancement of compensation in respect of mango trees was rejected.

7. Learned Counsel for the appellant submitted that the compensation awarded by both the First Appellate Court and the Reference Court are on the lower side. He referred to the judgment in various other cases passed by the Reference Court, First Appellate Court and by this Court in respect of the very same project and prays for enhancement of compensation. Therefore, he submitted that in the present case also, the appellant/claimant is entitled



for enhancement of compensation on the ground of parity.

8. On the other hand, learned Counsel for respondent No.2-Cauveri Neeravari Nigam Limited submitted that second respondent is the beneficiary of the land acquisition, but it was not made a party both in the Reference Court as well as First Appellate Court and second respondent was deprived of taking contention before both the Courts below. Therefore, he opposed the enhancement of compensation by contending that compensation is to be assessed on the basis of nature of soil, situation of land, distance between nearest town or city, whether the land is abutting to any highway or situated at distance from the highway, whether highway is a state highway or national highway or district road, what are the ages of trees situated on the land, how much quantity of trees are fruit bearing etc. are to be adduced in evidence



and then only a determination of proper compensation would be arrived at. But the second respondent who was not a party before the courts below was straightaway impleaded as a party in this appeal. Therefore, he prayed for remanding the matter to the Reference Court so as to enable second respondent to cross-examine the witnesses of the claimant and also to adduce evidence.

9. Upon hearing the rival contentions, the points that arise for consideration are as follows:

- i. *Whether under the facts and circumstances of the case, the second respondent who is a beneficiary of the land acquisition is a necessary and proper party before the Reference Court in the land acquisition proceedings?*
- ii. *What orders?*

10. The land owner is claiming that he is the owner of the land and his land was acquired for



Hemavathi Canal Project. Being dissatisfied with the quantum of compensation awarded by the first respondent-the SLAO, the claimant made the application under Section 18(1) of the Act and SLAO referred the case to the Reference Court. The claimant has prosecuted the case before the Reference Court without making the second respondent as a party, though the second respondent is beneficiary to land acquisition. Even in the appeal before the First Appellate Court, second respondent was not made a party. The second respondent is the beneficiary of the land acquisition and first respondent is only the acquiring authority but not the beneficiary. The first respondent being acquiring authority has initiated land acquisition proceedings for the purpose of formation of Hemavathi Canal project on behalf of the beneficiary and ultimately, beneficiary is entitled to take over the land acquired by the first respondent and form the



project and therefore, compensation would be given by the beneficiary party, but not by the first respondent. Therefore, in this context, the beneficiary on whose behalf of the land is acquired is a proper and necessary party. Though the proceedings can be adjudicated in the absence of proper party. But necessary party is that in whose absence, there could not be effective adjudication between the parties. Therefore, second respondent beneficiary is not only proper party, but also necessary party.

11. Order I Rule 10 of CPC stipulates regarding filing of suit in the name of wrong plaintiff and the Court may strike out or add parties dealing with necessary and proper party in the suit.

"A "necessary party" is a person who ought to have been joined as a party and in whose absence no effective decree could be passed at all by the court.

If a "necessary party" is not impleaded, the suit itself is liable to be dismissed.



A "proper party" is a party who, though not a necessary party, is a person whose presence would enable the court to completely, effectively and adequately adjudicate upon all matters in dispute in the suit, though he need not be a person in favour of or against whom the decree is to be made.

Distinction between necessary and proper parties.

The distinction between the two terms can be noted as follows:

NECESSARY PARTY	PROPER PARTY
Necessary party is the party whose presence is indispensable for the suit to be adjudicated upon	In case of proper parties, the presence or absence is no ground for determining whether the suit should be dismissed or not
Necessary party is the party which is essential for an order to be passed, since the order is based upon the relief asked for by such party	The passing of a decree is not dependent on the demands of proper parties. (However, the decree is applicable upon proper party as well)
For example: In a suit regarding partition of land or property, all the people who have a share in the property are necessary parties; In a suit regarding selection and appointment, all those who have been selected or appointed are considered as necessary parties.	For Example: In a suit between landlord and tenant, a sub-tenant would be a proper party (though he is affected by the decree, his presence is not indispensable) In a suit regarding land or property acquisition between a father and son, the other relatives, like grandfather, uncle, aunt etc. would be proper parties.

In Gurmit Singh Bhatia v. Kiran Kant Robinson, (2020) 13 SCC 773 : 2019 SCC OnLine SC 912 at page 778, the Supreme Court has observed:

It is further observed and held by this Court that two tests are to be satisfied for determining the question as to who is a necessary party. The tests are:
(1) there must be a right to some relief against such

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party in respect of the controversies involved in the proceedings; (2) no effective decree can be passed in the absence of such party. It is further observed and held that in a suit for specific performance the first test that can be formulated is, to determine whether a party is a necessary party there must be a right to the same relief against the party claiming to be a necessary party, relating to the same subject-matter involved in the proceedings for specific performance of contract to sell. It is further observed and held by this Court that in a suit for specific performance of the contract, a proper party is a party whose presence is necessary to adjudicate the controversy involved in the suit. It is further observed and held that the parties claiming an independent title and possession adverse to the title of the vendor and not on the basis of the contract, are not proper parties and if such party is impleaded in the suit, the scope of the suit for specific performance shall be enlarged to a suit for title and possession, which is impermissible. It is further observed and held that a third party or a stranger cannot be added in a suit for specific performance, merely in order to find out who is in possession of the contracted property or to avoid multiplicity of the suits. It is further observed and held by this Court that a third party or a stranger to a contract cannot be added so as to convert a suit of one character into a suit of different character.

In U.P. Awas Evam Vikas Parishad v. Gyan Devi, (1995) 2 SCC 326 at page 343, the Supreme Court has observed:

21. The law is well settled that a necessary party is one without whom no order can be made effectively and a proper party is one in whose absence an effective order can be made but whose presence is



necessary for a complete and final decision of the question involved in the proceeding.

In Vidur Impex & Traders (P) Ltd. v. Tosh Apartments (P) Ltd., (2012) 8 SCC 384 : (2012) 4 SCC (Civ) 1 : 2012 SCC OnLine SC 616 at page 413, the Supreme Court has observed:

41. Though there is apparent conflict in the observations made in some of the aforementioned judgments, the broad principles which should govern disposal of an application for impleadment are:

41.1. The court can, at any stage of the proceedings, either on an application made by the parties or otherwise, direct impleadment of any person as party, who ought to have been joined as plaintiff or defendant or whose presence before the court is necessary for effective and complete adjudication of the issues involved in the suit.

41.2. A necessary party is the person who ought to be joined as party to the suit and in whose absence an effective decree cannot be passed by the court.

41.3. A proper party is a person whose presence would enable the court to completely, effectively and properly adjudicate upon all matters and issues, though he may not be a person in favour of or against whom a decree is to be made.

41.4. If a person is not found to be a proper or necessary party, the court does not have the jurisdiction to order his impleadment against the wishes of the plaintiff.

41.5. In a suit for specific performance, the court can order impleadment of a purchaser whose conduct is above board, and who files application for being joined as party within reasonable time of his acquiring knowledge about the pending litigation.

41.6. However, if the applicant is guilty of contumacious conduct or is beneficiary of a clandestine transaction or a transaction made by the owner of the suit property in violation of the restraint order passed by the court or the application is unduly delayed then the court will be fully justified in declining the prayer for impleadment."



12. The second respondent being the beneficiary on whose behalf lands are acquired for formation of some projects, therefore, beneficiary will take control over the lands acquired and every title, right and interest would be vested with the beneficiary and ultimately, while determining the compensation, beneficiary must be heard by giving opportunity to the beneficiary. Therefore, without making beneficiary a party, determining compensation and thereafter directing the beneficiary to pay compensation is violation of principles of *audi alteram partem*. Therefore, beneficiary on whose behalf land is acquired is a necessary party and in whose absence, there could not be effective adjudication. Without making the beneficiary as a party in the proceedings, determining the compensation and compelling the beneficiary to pay compensation is nothing but violation of principles of natural justice as ultimately,



it is beneficiary who has to pay compensation to the claimants/land losers.

13. The Special Land Acquisition Officer who is the acquiring authority has been vested with power by the Government to acquire the land for the purpose of some projects of the Government on behalf of the beneficiary. After acquisition, the beneficiary shall hold, control, supervise, monitor and use the said land for the purpose of carrying out the project. Therefore, the beneficiary will become owner of the said land for the purpose of carrying out the project after completion of the acquisition proceedings. Then the role of the beneficiary will start. It is actually the beneficiary is interested party. Thus, he is taking over right to participate in the acquisition proceedings and in the process of adjudication determining compensation where the claimants are claiming compensation based on the nature of soil, potentiality.

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of the land whether it is vicinity to the town and city and whether it is adjacent to National Highway/State Highway/District Road, whether in the surrounding any potential commercial activities are there, fertility of the land, standing trees thereon, fruit bearing yield of trees, age of trees etc., are to be considered by both the claimants and beneficiaries. Therefore, the beneficiary is a necessary party. Ultimately, the beneficiary is disbursing compensation to the claimants/land losers. Therefore, the beneficiary is not only proper party, but also necessary party. In this regard, I place reliance on the judgment of the Hon'ble Supreme Court in the case of **U.P.AWAS EVAM VIKAS PARISHAD VS. GYAN DEVI (DEAD) BY LRS. AND OTHERS¹**, wherein at paragraph Nos.21 and 22 observed as follows:

"21. We may now come to the stage of the proceedings before the court in a

¹ (1995) 2 SCC 326

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reference under Section 18 of the L.A. Act made at the instance of a person having interest in the land being acquired. At this stage also Section 50(2) of the L.A. Act envisages that the local authority has a right to appear and adduce evidence before the court. This right is independent of the right that is available to the local authority to appear and adduce evidence before the Collector. Even though the local authority had failed to appear before the Collector in spite of notice or had appeared in response to notice and had adduced evidence, the local authority may consider it necessary to adduce evidence to rebut the evidence adduced by the person who has sought the reference and to defend the award made by the Collector. Failure to give notice at this stage would result in denial of the said right of the local authority. Before we consider the remedy that is available for seeking redress against the denial of this right we may examine whether the local authority has a right to be impleaded as a party in the proceedings before the reference court. That raises the question whether the local authority can be regarded as a necessary or a proper party. The law is well settled that a necessary party is one without whom no order can be made effectively and a proper party is one in whose absence an effective order can be made but whose presence is necessary for a complete and final decision of the question involved in the proceeding. (See *Udit Narain Singh Malpaharia v. Additional Member, Board of Revenue*.) A local authority for whom land is being acquired has a right to participate in the acquisition proceedings in the matter of determination of the amount of compensation while they are pending before the Collector and to adduce evidence in the said proceedings. While it is precluded from

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seeking a reference against the award of the Collector it can defend the award and oppose the enhancement of the amount of compensation sought before the reference court by the person interested in the land. Moreover the local authority has a right to appear and adduce evidence before the reference court. Having regard to the aforesaid circumstances, we are of the opinion that the presence of the local authority is necessary for the decision of the question involved in the proceedings before the reference court and it is a proper party in the proceedings. The local authority is, therefore, entitled to be impleaded as a party in the proceedings before the reference court.

22. In case the amount of compensation has been enhanced by the court and no appeal is filed by the Government the local authority if adversely affected by such enhancement may file an appeal with the leave of the court. This right of the local authority does not depend on its being impleaded as a party in the proceedings before the reference court. Even if the local authority is not impleaded as a party before the reference court it can file an appeal against the award of the reference court in the High Court after obtaining leave if it is prejudicially affected by the award. In case the Government files an appeal against the enhancement of the award the local authority is entitled to support the said appeal and get itself impleaded as a party. When the person having an interest in the land files an appeal in the High Court against the award of the reference court and seeks enhancement of the amount of compensation the local authority should be impleaded as a party in the said appeal and it is entitled to be served with the notice of the said appeal so that it

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can defend the award of the reference court and oppose enhancement of the amount of compensation before the High Court. The same will be the situation in case of an appeal to this Court from the decision of the High Court."

14. Further, in these proceedings, if the compensation is enhanced by referring to judgments and awards rendered in other cases, what would be the difference in factual matrix in those cases and present case are to be ascertained. Though reference is made of the awards/orders passed in other cases by contending that lands are similarly situated as in the present case, but the evidence adduced in those proceedings are to be considered regarding ascertainment of nature of land, standing trees thereon, quantum of fruit bearing trees according to age of the trees, whether there are state highway or national highway abutting to the land, what is the distance between aforesaid land and nearby town or city, potentiality of land etc. Therefore, in this regard,

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the beneficiary must be made as party and opportunity of tendering evidence is to be given and shall be heard and in the absence of beneficiary, determining the compensation is not correct. Therefore, when the compensation is determined without beneficiary but ultimately, beneficiary is liable to pay compensation, then without making beneficiary a party amount to denial of right to the beneficiary at the time of determining the compensation.

15. The Government has also issued Circular bearing No.RD 04 LCA2024(E-1351620) dated 07.03.2024 stating that on whose behalf land is acquired, they must be made a party in the proceedings. When the Courts have determined the compensation and execution of said awards are made, unnecessarily, there will be orders from the Courts attaching the movable properties of SLAO/State authorities. But the SLAO/State authorities are only



acquiring authority and ultimately, the compensation will have to be paid by the beneficiaries but they are not made as parties. This would cause unnecessary delay in executing the award, affecting right of the claimants/land owners. Therefore, in this way, beneficiary will have to be made as a party in the acquisition proceedings.

16. Therefore, for the aforesaid reasons and in view of the principle of law laid down by the Hon'ble Supreme Court in **U.P.AWAS EVAM VIKAS PARISHAD's** case (stated supra), the point is answered in the affirmative holding that beneficiary must be made a party in the land acquisition proceedings while determining the compensation as beneficiary is not only proper party, but also necessary party. But in the present case, second respondent beneficiary was not made party in the Reference Court as also before the First Appellate Court and straightaway second



respondent is made a party in this appeal by way of impleadment. Therefore, this court is of the opinion that the matter must be is remanded to the Reference Court and impugned award passed by the Reference Court and the First Appellate Court will have to be set aside. The second respondent beneficiary will have to be made as a party in the Reference Court and parties are to be given opportunity to adduce their further evidence, if they are so advised, either oral, documentary or both.

17. Hence, I pass the following:

ORDER

- i) Miscellaneous Second Appeal is ***allowed***;
- ii) The order of the First Appellate Court dated 17.02.2018, passed in R.A.No.276/2017 and the order of the Reference Court dated 03.11.2011 in LAC No.278/2006 are set aside and the matter is

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remanded to the Reference Court for fresh disposal in accordance with law;

- iii) Second respondent herein shall be made as a party in the Reference Court;
- iv) Liberty is reserved to both parties to adduce evidence in further if they are so advised, either oral, documentary or both.
- v) All parties in the case shall be present before the Reference Court on **06.01.2025**;
- vi) The Reference Court shall decide the case and pass appropriate orders within six months from **06.01.2025**.
- vii) All contentions of parties are kept open.
- viii) Court fee paid by the claimant in this appeal shall be refunded to the claimant with proper identification.

SD/-
(HANCHATE SANJEEVKUMAR)
JUDGE

Madras High Court

Rathinaswamy vs Achi Kannu on 4 March, 2020

Author: G.K.Ilanthiraiyan

Bench: G.K.Ilanthiraiyan

S.A.No. 1698 of 2003

JUDGMENT

This appeal has been preferred as against the judgment and decree passed in A.S.No.37 of 2001 on the file of the court of Additional Sub-Ordinate Judge, Nagapattinam dated 18.06.2003 in confirming the judgment and decree passed in O.S.No.99 of 1995 on the file of the District Munsif, Nannilam dated 09.09.1998.

2. For the sake of convenience, the parties are referred to as per their ranking in the Trial Court.

3. The case of the plaintiffs in brief is as follows:-

3.1. The suit is for partition. The first defendant is the son of the first plaintiff's husband's first wife. The first plaintiff got married with her husband one Muthaiyan under Hindu rights and customs and gave birth to the plaintiffs 2 and 3. The first defendant, after death of his first wife got second marriage and <http://www.judis.nic.in> thereafter, he left her father Muthaiyan after obtaining his house. Thereafter, the said Muthaiyan and the first plaintiff were lived in a hut put up at Poromboke land and after death of the said Muthaiyan, the first plaintiff is living there. The said house is the second item of the A schedule suit property. The suit properties belonged to the said Muthaiyan and all are joint family properties and the first item of the suit property shown as gift. In the second item of the suit property, the first plaintiff and the said Muthaiyan constructed a house. The 3rd item of the suit property belonged to the first plaintiff, which is derived from her ancestral property. Therefore, the plaintiffs caused notice to the first defendants.

Since after death of Muthaiyan, the first defendant is in possession and enjoyment of the Item 1 and 3 of the suit schedule property. Further, the first defendant rented out the first item of the suit A schedule property and also has separate income and never shared the income with the plaintiffs. Therefore, filed a suit for partition of 3/5th share in the first item of the suit A schedule property and 3/10th share in the Item 2 and 3 of the suit A schedule property.

4. Resisting the same, the first defendant filed a written statement stating that he is the son of Muthaiyan, who died in the year 1975. He denied that the first plaintiff is not the legally wedded to the said Muthaiyan. The first plaintiff had lived for sometime with the said Muthaiyan as his mistress and they <http://www.judis.nic.in> never lived jointly in the first item of the suit schedule property. Admittedly, the suit property belonged to

the said Muthaiyan. The Government had issued Kudiyiruppu Patta in favour of the first defendant in respect of the first item of the property. The second item of the A schedule property is still classified as a Government poromboke. The government issued B Memo notice in the name of the wife of the first defendant by name, Achikannu. In fact, the said property was purchased by the wife of the first defendant. In so far as the third item of the suit A schedule property was usufructory mortgaged in favour of one Kamaraju by the deceased Muthaiyan. The first defendant redeemed the same at the cost of Rs.4,000/-. Therefore, the plaintiffs are not at all entitled for any share over the properties. The first plaintiff, immediately after death of Muthaiyan has left for Thirumananchery Village which is her native thereafter, she did not claim anything for her. The suit itself is barred by limitation. Further, the first defendant has got another their sister born through said Muthaiyan. Therefore, his sister has not been shown as a party in the partition suit and as such the suit is bad for non-joinder of necessary parties, since she has also entitled to her respective share. Therefore, prayed for dismissal of the suit.

5. The second defendant separately filed written statement and stating that the third defendant is not concerned in respect of the Item 1 and 3 <http://www.judis.nic.in> of the suit A schedule property. The second item of the suit A schedule property is classified as poromboke land. Originally, the first defendant's wife one Achikannu was in possession and enjoyment of the second item of the property and she put up a hut in the said property. The government is also recognized her possession and issued B memo in her favour. Her house was assessed to house tax and paying house tax for the said house. Thereafter, she sold out the super structure in favour of the third defendant on 18.05.1990 for valuable sale consideration. Reversing from the date of purchase of the suit 2 item of the property, the 3rd defendant has been put in possession and enjoyment of the same. In fact, the B memo subsequently issued in the name of the 3rd defendant by the government. Therefore, the third defendant is absolute owner of the second item of the suit A schedule property and the plaintiffs have no right or interest over the said property and prayed for dismissal of the suit.

6. On the side of the plaintiffs, they examined P.W.1, P.W.2 and P.W.3 marked Exs. A1 to A5. On the side of the defendants, they examined D.W.1 to D.W.3 and were marked Exs.B1 to B25. On perusal of the materials available on record and submissions made

by the counsels on either side, the Trial Court decreed the suit and in so far as the first item of the suit A schedule property is concerned, the plaintiffs are entitled to 3/10th share and in so far as the Item 1 <http://www.judis.nic.in> and 2 are concerned, dismissed the suit. In respect of mense profits, the plaintiffs are given liberty to take appropriate action under Order 20 Rule 12 of the Code of Civil Procedure. Aggrieved by the same, the first defendant filed appeal suit in A.S.No.37 of 2001. Pending the said appeal, the plaintiffs also filed cross-objection. The first Appellate Court dismissed the appeal and confirmed the judgment and decree passed by the Trial Court. Aggrieved by the same, the first defendant preferred this second appeal.

7. At the time of admission, the following substantial questions of law were framed for consideration:-

"1. When admittedly the other sharer viz Kaliyammal, the sister of the 1st defendant was not impleaded as a party to the suit, whether the suit is bad for non-joinder of necessary party ?

2. When the 3rd item of the suit property is a dwelling house and the 1st defendant is residing therein, whether the Courts below erred in law in holding that the said item is available for partition and division despite the specific bar in Section 23 of Hindu Succession Act ?

3. Whether the suit is bad for partial partition when the other properties are not included in the suit?

4. When the 3rd item of the suit property was never belonged to the father of the 1st defendant, whether the lower Appellate Court not erred in law in holding that the said item of the property is an ancestral of the 1st defendant ?" <http://www.judis.nic.in>

8. The learned counsel appearing for the appellant raised his objection only on one ground that the suit itself is bad for non-joinder of necessary parties. When the first defendant specifically pleaded in his written statement that his sister has not been impleaded as party to the suit that too for partition. Even then, the Trial Court did not frame any issues in this regard. He also submitted that though the first Appellate Court discussed about the ground raised by the first defendant, no points have been framed for determination by the first Appellate Court. Therefore, the suit itself is bad for non-

joinder of necessary parties and to support all his contention, he relied upon the judgment of this Court reported in 2010 6 MLJ 351 in Venkataramana and Others Vs. N.Munuswamy Naidu and Others.

9. Per contra, the learned counsel appearing for the plaintiffs submitted that though both the Courts below did not frame any issue with regards to non-joinder of necessary parties, the sister of the first defendant was also taken care and she was allotted 1/3 rd share in the 3rd Item of the suit schedule property. Therefore, the suit is very much maintainable and it cannot be dismissed on the technical ground and prayed dismissal of the second appeal. <http://www.judis.nic.in>

10. Heard Mr.A.Muthukumar, learned counsel appearing for the appellant and Mr.S.Sounthar, learned counsel appearing for the respondents 1 and 3.

11. The suit is filed for partition in respect of the suit properties without going into the other substantial questions of law formulated by this Court. The first substantial question of law has to be dealt with as primary substantial question of law. The first plaintiff is the second wife of one Muthaiyan. Admittedly, he has got married with the first wife namely, the mother of the first defendant and gave birth to the first defendant and one daughter namely, Kaliammal, the second and third plaintiffs are born to the said Muthaiyan through the first plaintiff namely, the second wife. The first defendant filed his written statement and specifically stated that his sister has not been impleaded as party to the suit that too for partition. Even then, the plaintiffs did not take any steps to implead the sister namely, Kaliammal as a party to the suit. Further, the Trial Court also failed to frame any issue in this regard. Though the first Appellate Court discussed in question of law No.6 about the sister of first defendant has raised by the first defendant held that the plaintiffs are entitled to their 3/10th share in the 3 Item of the suit A schedule property. The remaining <http://www.judis.nic.in> share were allotted to the first defendant and his sister. Therefore, the share of the sister of the first defendant has been duly taken care of by the Trial Court and as such the suit cannot be dismissed on the ground of the non-joinder of necessary party.

12. In this regard, the learned counsel appearing for the first defendant relied upon the judgment reported in 2010 6 MLJ 351 in Venkataramana and Others Vs. N.Munuswamy Naidu and others, this Court held as follows:-

"20. The learned Senior Counsel for the Respondents would strenuously contend that two co-sharers by name Rajendran and Ravindran have not been included in the Suit, who are sons of Govindasamy Naidu, 6th Defendant in the Suit, who remained ex parte and died pending the trial of the Suit. He invited attention of the Court to the provision in Order 1, Rule 9 of C.P.C. which reads as follows:

"9. Misjoinder and non-joinder:

No Suit shall be defeated by reason of the misjoinder or non-joinder of parties and the Court may in every Suit deal with the matter in controversy so far as regards the right and interests of the parties actually before it."

21. When proper parties were not included in the Suit, the Suit is not bad for non-joinder, but if the parties who are not on the array of the parties in the Suit who are necessary parties in whose absence no final adjudication could be made, then the Suit has to be held bad for non-joinder of necessary parties. If proper parties are not added, the Court may allow further time affording opportunity to the Plaintiff to include them. But if the necessary parties were <http://www.judis.nic.in> omitted to be included in the Suit, then the Plaintiff has to face the legal consequence of dismissal of the Suit. In the absence of necessary party, no effective decree could be passed. In short, non-joinder of proper party is not fatal while non-joinder of necessary party is fatal to the case. When the Court sees that a particular party, who has been ignored by the Plaintiff in the suit, there is no option for the Court except to dismiss the same.

23. The learned Senior Counsel for the Respondent has also admitted that specific defence as to the non-joinder of necessary party has not been raised in the Written Statement. However, it is open to the Defendant to raise the same at any stage of the case as it goes to the root of the matter. To establish his contention, he garnered support from a decision of this Court in Shanmugham and others v. Saraswathi and others, AIR 1997 Mad. 226 where it is held as follows:

"9. ?? The contention of non-joinder of necessary parties in a Suit for partition can be raised at any time as it goes to the root of the matter. It is well settled that a Suit for partition is not maintainable in the absence of some of the co-owners. See A. Ramachandra Pillai v. Valliammal, 1987 (100) Mad LW 486."

In view of the above said principles, this Court is of the considered view that non-joinder of necessary party in this partition Suit is fatal and the Suit has to face dismissal on this point. The point is answered accordingly."

13. In the above case, this Court held that the appropriate parties were not included in the suit, the suit is not bad for non-joinder but, if the parties who are not on the array of the parties in the suit, who are necessary parties, in the absence, no final adjudication could be made, then the suit has to be held bad for non-joinder of necessary parties. Therefore, the plaintiff has to face the legal consequences on dismissal of the suit. In the case on hand, <http://www.judis.nic.in> admittedly, one Kamalammal was born to Muthaiyan through his first wife. He is none other than the own sister of the first defendant. When the first defendant specifically pleaded in his written statement that his sister has not been added as a party and as such prayed for dismissal of the suit for non-joinder of necessary parties. If the Trial Court failed to frame any issues in this regard and the plaintiff also failed to take any steps to implead the sister of the first defendant as a party to the suit. Especially, the suit for partition, all the parties have to be shown as a parties so that the partition can be completely effected. In the absence of necessary party no effective decree can be passed. Therefore, non-joinder of necessary party is fatal to the case. In view of the above said principles, this Court is of the considered opinion that non-joinder of necessary party in this partition suit is fatal and the suit is liable to be dismissed on this ground alone. Accordingly, the first substantial question of law is answered against the plaintiffs and in favour of the defendants. Therefore, this Court is of the considered opinion that the Courts below completely erroneous in holding that the suit is maintainable without adding the necessary party to the suit for partition and against the evidence on ground. Therefore, this Court is necessarily to interfere with the findings of the Courts below. <http://www.judis.nic.in> G.K.I LANTHIRAIYAN, J.

14. In fine, this second appeal is allowed, the judgment and decree passed by the Courts below are set aside and consequently, the suit filed by the plaintiff is dismissed. No costs.

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MCOR-105292/25
PG Yatnal

FORM III - A

IN THE HIGH COURT OF KARNATAKA, DHARWAD BENCH
WRIT PETITION NO. 101758 OF 2025 (LA-RES)
[Notice under Rule 13(a) proviso]

ANNEXURE - K-

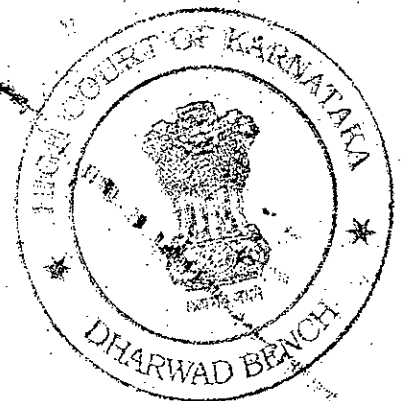
PETITIONER

1. KRISHNA BHAGYAJALA NIGAMA LTD.,
UPPER KRISNA PROJECT, ALMATTI
TQ. NIDAGUNDI, VIJAYAPUR DIST. 586201
REP. BY IS MANAGING DIRECTOR

(BY SRI P G YATNAL ADV.)
VS

RESPONDENTS

1. THE SPECIAL LAND ACQUISITION OFFICER
BTDA, BAGALKOT 586201
2. THE STATE OF KARNATAKA
REP. THE DEPUTY COMMISSIONER
BAGALKOT 586201
3. MURAGESH ALIYAS MURUGESH NAGARAL S/O GURABASAPPA
ALIYAS GURUBASAPPA
AGED ABOUT 48 YEARS,
R/AT NEAR KUMARESHWARA HOSPITAL, BAGALKOT
TQ AND DIST. BAGALKOT 587101
4. PRAKASH S/O SHIVAPPA YADAHALLI
AGED ABOUT 53 YEARS,
R/AT MUCHAKANDI CROSS, BAGALKOT
TQ AND DIST. DIST. BAGALKOT 587101
5. NEERAJ S/O PARASAMAL BOTHRA
AGED ABOUT 48 YEARS,
R/AT MARVADI GALLI, BAGALKOT
TQ AND DIST. BAGALKOT 587101



(SRI. G.K. HIREGOUDAR., ADV. FOR R1)
(AGA TAKES NOTICE FOR R2)

TO

RESPONDENTS NO. 3 TO 5

Whereas, a Writ Petition filed by the above named petitioners under Articles 226 & 227 of the Constitution of India, as in the copy annexed hereunto, has been registered by this court.

This Certified Copy Contains 3 Pages
and Copying Charges of Rs. 3 is received
in Cash / online.

Notice is hereby given to you to appear in this court in person or through an Advocate duly instructed or through some one authorised by law to act for you in this case, within 10 days of the service of this case to show cause why rule nisi should not be issued.

If you fail so to appear on the said date or any subsequent date to which the matter may be posted as directed by the court, without any further notice, the petition will be dealt with, heard and decided on merits in your absence.

READ: The interim prayer, praying to stay the further proceedings in LAC No. 276/2019, L.A.C. NO. 284/2019, L.A.C. NO. 290/2019, L.A.C. NO. 294/2019 and L.A.C. NO. 1285/2019 pending on the file of II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalkot pendency of this writ petition.

SCHEDULE PROPERTY

ITEM NO. 1

Landed property to the extent of 0-20 guntas land in Sy. No. 199/5 of Bagalkot city, Tq and Dist.

ITEM NO. 2

Landed property to the extent of 0-18 guntas land in Sy. No. 199/8 in Bagalkot city, Tq & Dist Bagalakot

ITEM NO. 3

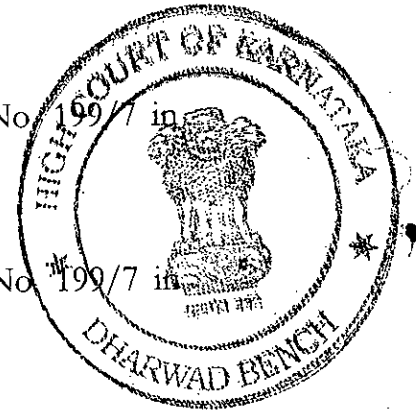
Landed property to the extent of 10 guntas land in Sy. No. 203/3A/4 0- in Bagalkot city, Tq & Dist Bagalakot

ITEM NO. 4

Landed property to the extent of 0-20 guntas land in Sy. No. 199/7 in Bagalkot city, Tq & Dist Bagalakot

ITEM NO. 5

Landed property to the extent of 0-20 guntas land in Sy. No. 199/7 in Bagalkot city, Tq & Dist Bagalakot



INTERIM ORDER

Pending issue of Rule nisi in the aforesaid Writ Petition it is hereby ordered by this Court on THE 11TH DAY OF MARCH 2025 By Hon'ble Ms. Justice JYOTI MULIMANI as follows :

"Sri.Yatnal Parasappa Gurappa., counsel for the petitioner has appeared through video conferencing.

Sri.G.K.Hiregoudar., counsel is directed to take notice on behalf of respondent

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AGA is directed to take notice on behalf of respondent No.2.

Issue notice to other respondents, if process fee is paid.

Counsel for the petitioner is directed to serve two sets of copies of Writ Petition along with Annexures to counsel Sri.G.K.Hiregoudar and also for AGA.

There shall be an interim order as prayed for.

Counsel for the petitioner submits that hand delivery may be ordered.

Submission is noted.

The Registry concerned is hereby directed to issue hand delivery."

Sd/-
Judge.

//COPY//

(MEENAKSHI S.H.)

ASSISTANT REGISTRAR

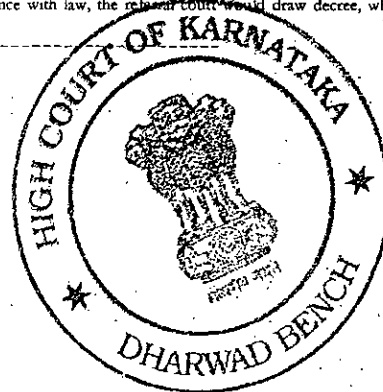
Copy to : The II Addl. District Judge and Addl. Land Acquisition, Rehabilitation and Resettlement Authority, Bagalkot for ref. in LAC No. 276/2019, L.A.C. NO. 284/2019, L.A.C. NO. 290/2019, L.A.C. NO. 294/2019 and L.A.C. NO. 1285/2019.

SK-11.03.2025

Free legal aid will be provided to SC/ST, Women, Child, Convicted/Prisoners, Industrial workmen, Mentally ill, Disabled etc., and also whose annual income is less than Rs.1,00,000/-. The eligible persons may contact the Member Secretary, High Court Legal Services Committee or District Legal Services Authority or Taluka Legal Services Committee.

QUICK SETTLEMENT OF DISPUTES IN (BENGALURU) MEDIATION CENTRE

Disputes concerning Family / Property / Other Matters referred to, by the Courts to Bangalore Mediation Centre / Mediation Centres in the concerned Districts, will be mediated effectively and legally by trained Mediators within 60/90 days and settled as per terms agreed to by both the parties voluntarily. Litigant public could seek reference by the concerned Court for mediation of their disputes. If the settlement is in accordance with law, the relevant court would draw decree, which becomes final and there would be no appeal therefrom.



- The date on which the application was made 11/2/25
- The date on which charges and additional charges, if any, are called for 11/2/25
- The date on which charges and additional charges, if any, are deposited / Paid 11/2/25
- The date on which the copies reach 11/2/25
- The date of notifying the copy is ready for delivery 11/2/25
- The Date on which the applicant is required to appear on before 11/2/25
- The date on which copy is delivered to the applicant 11/2/25
- Examined by 11/2/25

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. /2025

BETWEEN;

Krishna Bhagya Jala Nigama Ltd. ...Petitioner

AND:

The Special Land Acquisition Officer and Ors. ...Respondents

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Bengaluru

01/04/2025

Adv. For Petitioner

(P. G. Yatnal)

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IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION NO. _____/2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd.,

Upper Krishna Project, Almatti,

Tq: Nidagundi, Vijayapur Dist.-

Rep. By its Managing Director

...Petitioner

/V/S

1. The Special Land Acquisition Officer,

BTDA, Bagalakot-586201

2. The State of Karnataka

Rep. the Deputy Commissioner,

Bagalakot-586201

3. Sri. Aravind S/o Anaveerapa Telsang

Age: 62 years, Occ: Nil,

R/o: Bagalkot

Bagalkot, Tq and Dist: Bagalkot

...Respondents

**APPLICATION UNDER RULE 11 OF THE WRIT PROCEEDINGS
RULES, 1977**

For the reasons stated in the accompanying affidavit, this Hon'ble court may be pleased to dispense with production of certified copy of impugned order dated 25/03/2025 in LAC No. 624/2023 vide of Annexure-G, as it is produced in WP FR No. _____/2025, in the interest of justice.

Bengaluru

01/04/2025

Adv. For Petitioner
(P. G. Yatnal)

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and Ors. ...Respondents

MEMORANDUM OF FACTS

I, Sri. Parasappa Yatnal, aged about 37 years, Occ- advocate, R/at No. 200/A, 55th Cross, 10th Main, (Opp-Rammandir), Rajajinagar, Bengaluru-10, now come to Dharwad do hereby solemnly affirm and state on oath as follows:

1. I am the advocate for petitioner in the above case. I am conversant with the facts and circumstances of the petition. Hence I am swearing to this memorandum of facts.
2. I state impugned order Annexure- G is assailed before this Hon'ble court. I have produced a copy of Annexure-G along with petition. As joint order is passed by the Hon'ble court and I have, as it is produced in another writ petition mentioned in the application. The petitioner has also applied for a certified copy before the authorities, however, the authorities have not issued the said copy till today. Therefore, it is not produced. I undertake to produce it immediately after receiving from the authorities. Hence this affidavit.

The contents of the above affidavit are explained to me in my vernacular language and I believe them to be true and correct.

Bangalore.

Dated: 01-04-2024

Identified by me:

DEPONENT

IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd. ...Petitioner

AND:

The Special Land Acquisition Officer and Ors. ...Respondents

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Bengaluru

01/04/2025

Adv. For Petitioner

(P. G. Yatnal)

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IN THE HIGH COURT OF KARNATAKA AT DHARWAD

WRIT PETITION No. _____ /2025

BETWEEN:

Krishna Bhagya Jala Nigama Ltd.

...Petitioner

AND:

The Special Land Acquisition Officer and ors

... Respondents

MEMO FOR DISPENSATION OF NOTICE TO RESPONDENT NO.1

The counsel for the petitioner submits that-

The 1st respondent is a formal party and he has not opposed the IA of the petitioner before the trial court and hence, notice from this Hon'ble is not necessary.

Therefore, this Hon'ble court may be pleased to dispensed with issuance of notice to the 1st respondent in the present petition, in the interest of justice.

Dharwad.

Date: 01-04-2025

Advocate for Petitioner

(P. G. Yatnal)